

MR M. F. LAZARUS

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IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,
AT PANJIM, GOA

Special Civil Suit No. /2013

Comunidade of Bambolim,
A body constituted and functioning under
the Code of Comunidades 1961,
represented therein by their duly elected Attorney,
having their office at
Bambolim Church road,
P. O. GMC Complex,
Bambolim, Ilhas Goa -403202

...Plaintiff

V/s

1. Mrs. Dionisia Dias e Mergulhao,
w/o late Maximo Mergulhao, housewife,
Model Residency, Building No. 3,
Flat No. F4, First floor,
St. Inez, Panaji, Tiswadi, Goa
2. M/s Raghurai Tamba,
A registered partnership firm,
through its partner Shri. Raghurai Tamba,
major in age, Having its office at "Parimal"
Altinho, Panaji-Goa
3. Mr. Raghurai Tamba,
major in age, Businessman, r/o "Parimal"
Altinho, Panaji-Goa
4. Mr. Gonsalo G. Dias Sapeco,
Husband of late Luizinha Sebastiana Dias Sapeco,
Major in age, r/o Bambolim, P. O. GMC Complex,
Bambolim, Tiswadi-Goa
5. Mrs. Iria Lazarus,
Major in age, r/o H. No. 1056,
Primeiro Bairro, Santa Cruz,
P. O. Santa Cruz, Tiswadi-Goa
6. Mr. R. Vasantha R. Krishnan,
Major in age,
c/o T. S. Varadarajan,
Mormugao Port Trust/M/154B, Sada,
Vasco-da-Gama,
7. Mr. Bernardo Fernandes,
Major in age, r/o H. No. 814/2,
Morgado, Goa Velha, Ilhas-Goa
8. Mr. Leonardo Fernandes,
Major in age, r/o H. No. 814/2,
Morgado, Goa Velha, Ilhas-Goa
9. Mr. Vishwanath V. Kamat,
Major in age, r/o F-2, Kamat Nagar,
Helidoro Salgado Road,
Panaji-Goa
10. Mrs. Kamal V. Kamat,
Major in age, r/o F-2, Kamat Nagar,
Helidoro Salgado Road,

Major in age, r/o Aparna T-2, 3rd floor,
Dr. Atmaram Borcar Road,
Panaji-Goa

22. Mr. Mahableshwar M. Naik
Major in age,
r/o Valpoi, Sattari-Goa
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

23. Mrs. Surekha Suresh Salunke
Major in age,
r/o Valpoi, Sattari, Goa
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

24. Mr. Peregrino Gracias
Major in age,
r/o Siridao, Firguem Bhat,
Tiswadi-Goa

25. Mr. Joel Albert Fernandes
Major in age,
r/o Villa "AMOR",
Nagally Hills Colony,
DonaPaula, Ilhas-Goa

26. Mr. Perpetuo Socorro Pires
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

27. Mr. Cosme Antonio Gracias
Major in age, r/o Siridao,
Firguembhat, Ilhas-Goa

28. Mrs. Ana Francisca Gracias
Major in age, r/o Siridao,
Firguem bhat, Ilhas-Goa

29. Mr. John Cajetan Mascarenhas
Major in age, r/o Men Rave 25,
Lake View Colony, Miramar, Panaji-Goa

30. Mrs. Nubia Albina Mascarenhas

Major in age, r/o Men Rave 25,
Lake View Colony, Miramar, Panaji-Goa

31. Mr. Sebastiao E. J Coutinho
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

32. Mrs. Fatima Q Dias Coutinho
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

33. Mr. Agnelo Norberto Pereira de Araujo
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

34. Mr. Bosco D. Rodrigues,
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

35. Ms. Irene Apolonia Adeline Araujo
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

36. Esmeralda Afonso e Pouse Horta
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

37. Dominic Horta
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

38. Mrs. Tulshi R. Gauns,

Major in age, r/o 58,
behind Bambolim Church,
Bambolim, Ilhas -Goa

39. Mr. Khuku Raju Gauns,
Major in age, r/o 58,
behind Bambolim Church,
Bambolim, Ilhas -Goa

40. Mr. Purshottam L. Carbotkar,
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

.....Defendants

(Above addresses are registered
addresses of parties)

**Suit for declaration, Recovery of Possession, Permanent
Injunction and consequential reliefs**

MAY IT PLEASE YOUR HONOUR

The Plaintiff above named respectfully state and submits as under:-

1. The plaintiff is Comunidade of Bambolim and is entitled under the Code of Comunidade to file litigation to protect and preserve the land belonging to the Comunidade of Bambolim. The plaintiff has its office at the address given in cause title. The plaintiff states that since time immemorial there were various properties of village Bambolim, Tiswadi Taluka, Goa variously called "Comunidade Lands" which were denominated as "Lotes" bearing Lote number of each property incorporated therein name of the property in the map/plan called "Planta da Comunidade de Bambolim". These plans are also available on record with the Directorate of Settlement and Land Records copies of which are in possession with the plaintiff. These utility lands in the village were used for centuries for common benefit of Gaonkars which consisted of hills (Oiteiros), reserved grazing lands, paddy fields, water bodies(ponds) passages for pedestrian and even the grave yards etc. These land, stood vested in the comunidades governed by laws called "Code of Comunidades" and managed by a constituted body and

functioning with its office at Bambolim and accountable to the Administrator of Comunidade of respective Taluka. They are generally treated as inalienable in order that their status be preserved as "Comunidade lands" the protection of common rights of Gaonkars were so zealously protected and some of the Legislation mentions that even the vesting of the property did not mean that the common right of the Gaonkars were lost by such vesting.

2. The Code of Comunidades under Chapter II (Section I and II) deals with "Livro do Tombo 1st" is the cadastral of all the properties of the Comunidades mentioned in the maps (Plans) and describes the source of revenue not connected to private land, while "Livro do Tombo 2nd" is the detailed list of the properties in Comunidade domain which are in "POSSESSION" and inscribed in the name of private persons. "Livro do Tombo 2nd "B" deals with registration of definite calculation of redeeming "FOROS" (ground Rent) of the properties inscribed in the said Book. These properties have matriz registration number which shows name and boundaries of the property with the name of the owner.
3. The plaintiff is under a duty under the Code of Comunidades to protect the interests of the Comunidade and is entitled to file the present suit before this Court. Annexure "A" is the permissions dt. 8/10/2012 and 15/10/2013 obtained from Honorable Administrative Tribunal to the plaintiff to file the suit. The plaintiff is represented by its duly elected Attorney.
4. The plaintiff submits that the defendant no. 1, 2 and 3 are the persons who have manipulated the various records and fraudulently obtained collusive decrees in civil suits and have grabbed property of the plaintiff under present of survey no. 89/3 and 90/1 of village Bambolim, Tiswadi Taluka of State of Goa which is challenged in the present suit. Apart from the property involved in the present suit, the

property under survey no. 93/2,3 and 4 was claimed by the defendant no.1 for which separate suit bearing no. 52/2013/A is filed as the facts are slightly different from the other suit. In the present case the plaintiff is challenging the fraud committed by the defendants no.1 to 3 by executing agreement for sale, obtaining courts decrees and executing sale deeds with defendant no. 4 to 37.

5. The Defendant no. 4 to 37 are the persons who have executed sale deeds for purchase of the plots in the suit property from defendant no. 1, 2 and 3. The defendant no. 38,39 are parties to obtain various orders and decree in order to felicitate the defendant no. 1, 2 and 3 to grab the property of the plaintiff. The name of defendant no.40 is in other rights column of survey no.89/3 and he is joined as defendant. One such decree is dt. 11/4/2001 in Regular Civil Suit No. 15/2001/A passed by Civil Judge Senior Division at Panjim, Goa. The plaintiff is challenging the said , judgment and decree dt. 11/4/2001 in Regular Civil Suit No. 15/2001/A passed by Civil Judge Senior Division at Panjim, Goa obtained by misrepresenting before this honorable court. Hence they are necessary parties to the present suit. The facts necessary for adjudication of the present suit are as under:

6. The plaintiff states that there are various properties of the plaintiff in the village Bambolim which were owned and possessed by the plaintiff during Portuguese regime in Goa and managed as per Code of Comunidades. The subject matter of the present suit is part of the original property of the plaintiff named as "Oros" which part is presently surveyed under no. 89/3 and 90/1 in village Bambolim, Tiswadi Taluka of State of Goa.

7. The plaintiff submits that the subject matter of the present suit is more particularly described as the plots of land under no. 89/3 admeasuring 32,325 sq mts, and 90/1 admeasuring 5650 sq mts, in village Bambolim

which are parts of original property called Oros and the total area at present is admeasuring 36868 sq mts, namely:-

- a. Survey no. 89/3 admeasuring 32,325 sq mts presently bounded towards east by part of road and party of survey no. 88, towards west by plot surveyed under survey no. 89/1, towards north by plot surveyed under survey no. 87 and 88 and towards south by village road leading to Bambolim Village.
- b. Survey no. 90/1 admeasuring 5650 sq mts presently bounded towards east by National Highway Road, towards west by property of Comunidade of Curca named as Tanca Pedra, towards north by Survey no. National Highway Road and towards south by plot surveyed under survey no. 90/2. The plaintiff submits that out of area of 5650 sq mts an area of 1107 sq mts has been acquired and balance area available is 4543 sq mts.

The above referred two plots admeasuring 36868 sq mts described above are herein after called as the "suit property".

8. The plaintiffs state that originally there were two large properties adjoining each other, one by name "Oros" and other property known as "Saveli Gali" belonging to the plaintiff. The plaintiff crave leave to refer and rely upon the Tombasao Book No. 1 and Tombasao Book No. 2 showing that the said property Saveli gali and Oros belong to the Comunidade of Bambolim copy of which along with English translation is produced at Annexure "B", which is the extract from records of the comunidade. The old survey Plan which is called planta bearing no. 15036 and 15037 of these properties is available in the office of Director of Settlement and Land Records, Government of Goa, the copy of the same is produced and marked as Exhibit C.
9. The plaintiff states that the property of the plaintiff called "Oros" was under different Lotes namely Lote no. 43 Adicao(parcel) A,B,C,D details of which are as under:-

- a. Lote No. 43- Parcel(Adicao) 'A' of the Hill known as "Oros" with boundaries – on the east:- Lote No. 42; on the North properties of Ramanata Gauco of Palem of Siridao, of the heirs of Cipriano da Silva, of the heirs of Pedro Lourenco de Abreu and Henriques Jose de Abreu, of the heirs of Vicente Bernardo Abreu, of Domingos Antonio Joao de Souza and Avelino de Souza and of Jeremeias Jeromino de Souza, all from Bambolim, reserved lote No. XXV and property of Jorge Luis de Souza – on the West: The said reserved lote No. XXV; on the South: the said reserved lote No. XXV and the reserved lote No. XXIII-Area 58544.00 perimeter-1083.10m which was basically -Cashewnut grove.
- b. Lote No. 43-Parcel(Adicação) 'B' of the Hill known as "Oros" with boundaries on the east:- Lote No. 48 (parcel "A"); reserved lote Nos. XXIX, XXIV and XXV; on the North reserved lote Nos. XXIX, XXIV and XXV on the West: - properties of the heirs of Moga Gaudo, from Bambolim, that of the heirs of Rumaldo Jose Francisco Salvador Gonsalves, from Bambolim and Lote No. 47; on the South: property of the heirs of Rumaldo Jose Monteiro, from Bambolim, lote No. 47 and 48 (Parcel "A"). Area – 29584.00 sq mts perimeter-1364.80m-which was basically Cashewnut grove.
- c. Lote No. 43-Parcel(Adicao) 'C' of the Hill known as "Oros" with boundaries – on the east:- Highway (Estrada Nacional); on the North reserved lote Nos. XXIII; on the West: - reserved lote Nos. XXIII and XXV; on the South: reserved lote Nos. XXIX. Area – 10042.00 sq mts perimeter-461.50m.
- d. Lote No. 43-Parcel(Adicao) 'D' of the Hill known as "Oros" with boundaries – on the east:- Curca Village; on the North reserved lote Nos. XXVI and highway; on the West: - Highway; on the South: "Aforamentos" (perpetual Leases) of the heirs of Agostinho Cardoso, from Mercês. Area – 10554.00 sq mts perimeter-548.60m which was basically -Cashewnut grove.
- e. Lote No. 47 hillock named Saveli-gali (1st plot) with boundaries – on the east:- Lote No. 48 (parcel "A") and 43 (parcel "B"); on the North

- Lote No. 43 (parcel "B") and property of Mariano Francisco S. Gonsalves- West- property of Mariano Francisco S. Gonsalves, from Bambolim, drain, property of Marcos Vicente Gonsalves, of Bambolim and reserved lote no. XXX- South- reserved Lote No. XXX, Lote No. 49 and 48 (parcel A) —Area 65848.00 m²- Perimeter -1023.60 mts which was basically Cashew garden.
- f. Lote No. 48- 2nd plot (parcel A) of hillock named Saveli-galy with boundaries —east-Village Siridao and main road-North- reserved lote No. XXIX, lots nos. 43 (parcel B) and 47-West-Lote Nos. 43 (parcel B) 47 and 49 —South —Lote No. 49 and village Siridao —Area 115696.00m²- Perimeter-1629.30m-which was basically Cashew Plantation.
- g. Lote No. 48- 2nd plot (parcel B) of hillock named Saveli-galy with boundaries —east-Village Curca and Siridao - North- emphytéusis (perpetual lease) of the heirs of Agostinho Cardozo-West-main road — South main road and Village Siridao—Area 32122.00 m²- Perimeter- 719.80m-which was basically Cashew garden.
- h. Lote No. 49- 3rd plot of hillock named Saveli-gali with boundaries — east-Village Siridao Lots nos. 48 (parcel A) —North- Lote No. 47 and reserved Lot No. XXX property of heirs of Xaba Mainatta Paicas and others from Taleigao and Janqui Porbina, Bascora Poroba Sinai and others, from Ribandar-West- Reserved Lote No. XXX, property of Vencetexa Sinai Zuarcar and other from Siridao, and Reserved Lote No. XXX property of heirs of Xaba Mainatta Paicar and others from Taleigao and of Vitorina Melo from Sta. Cruz and Janqui Porbina, Bascxora Poroba Sinai and others, from Ribandar and of the heirs of Subraria R. Sinai Dondo, from Verem of Bardez, of Visnum Camotim Assencar and heirs of Balsrisna R. Camotim Assencar from Mapusa South- property of Vencetexa Sinai Zuarcar and other from Siridao, and of Janqui Porbina, Bascxora Poroba Sinai and others, from Ribandar and of the said heirs of Subraria R. Sinai dondo, from Verem of Bardez-

Area 132045.00m²- Perimeter-2081.80m-which was basically Cashew garden

The property adjoining the property OROS is known as "Saveli Gali" is bearing Lote no. 47, Lote No. 48 Adicao 'A' and 'B' and Lote no. 49 as per the Tombacao Book No. 1 details of which are as under :

10. The plaintiff submits that the property 'Saveli-Gali' bearing Lote No. 47- primeiro Lanço (1st parcel/division) Lote No. 48 Segundo Lanço 2nd parcel (Adicao A and B) and Lote No. 49 Terceiro Lanço (3rd parcel/division) as per Tombaço Book 1 (Livro de Tombo.1) belongs to the Comunidade of Bambolim as per "Planta Cadastral da Comunidade de Bambolim" under no.15036 and 15037. The plaintiff states that the form II (Area) book of Village Bambolim shows that S. No. 89, 90/1 and 2, 93 which corresponds to these properties of the plaintiff shows that the plaintiff is the owner of the said property. This form was made in the year 1972-73. The plaintiff craves leave to refer and rely upon the copy of the said form which is produced and marked as **Exhibit D**.
11. The plaintiff states that part of the property Saveli Gali under Lote No. 47 and 49 were partially acquired while Lote No. 48 (Segundo Lanço) (Adicao A) and adjoining Lote Reservado (Reserved Land) No. XXIV belonging to the plaintiff were acquired entirely along with other properties by the notification no. LQN-10/142 dated 18/08/1965 for Construction of Medical College, hostel and hospital building as per "Planta Cadastral da Comunidade de Bambolim" and as per the acquisition plan of the Government. The Land Acquisition Officer vide order dated 30th March 1966 awarded and paid compensation to the plaintiff. The plaintiff craves leave to refer and rely upon the notification dt.18/8/1965 and award dt. 30/3/1966 the copy of the same is produced and marked as **Exhibit E**. Subsequently the acquiring Department took

possession of acquired land vide letter no. LQN-10/227 dated 26/02/1966 from the plaintiff. The plaintiff crave leave to refer and rely upon the letter dt.26/2/1966 the copy of the same is produced and marked as **Exhibit F**.

12. The plaintiff further states that thereafter the Government proposed to acquire additional area admeasuring 23229.00 sq mts from the property Saveli gali for medical college vide notification-no. V/11/67/GMC/B-Project/7655 dated 4th December 1969 published in Govt. Gazette series II no. 38 dt. 04/12/1969. The plaintiff crave leave to refer and rely upon the notification dt. 4/12/1966 which is produced at **Annexure "G"**.

13. The plaintiff states that as per the minutes recorded in the Book of Contract of Comunidade of Bambolim various hills (OITEIROS) were auctioned on 3/1/1970 by the Managing Committee (Junta Administrativa) including Clerk of Comunidade of Bambolim Mr. Sidora Mahadev Xete which includes the hills of "Oros" and "Saveli Galli" which were allotted to the highest bidder as follows:-

- a. Lote No. 43 (Adicao 'A' to 'D') OROS to Mr. Salvador Bartolomeu Monteiro for annual rent of Rs. 764/- which presently carries survey no. 89/1, 89/2 and 89/3, 90/1 and 90/2 and 93/2 (part) (due to amalgamation of part of Lote No. 43(B) and 47 as per Survey no. 89, 90 and 93 respectively.
- b. i) Lote No. 47 Premeiro Lanco (1st part) to Mr. Teofilo J. Monteiro for annual rent of Rs. 1810/- which presently carries survey no. 93/2 (part) of Survey no. 93
- ii) Lote No. 48 Segundo Lanco (2nd part) consist of (Adicao A and B) to Mr. Manuel Belem Monteiro for annual rent of Rs. 3001/- for (Adicao A and B) which presently carries Survey no. 93/1 (part) while Lote No. 48 (Adicao B) carries Survey no. 92 which is situated across Bambolim Siridao National Highway Road.

c. Lote No. 49 Terceiro Lanco (3rd part) to Mr. Inacio Benedito Matias Monteiro for annual rent of Rs. 3001/- which presently carries survey no. 93/3(part) and 93/4 (part) of Survey no. 93

14. The plaintiff craves leave to refer and rely upon Annexure "H colly" which is Minutes of Auction of property Oros and Annexure "I colly" which is Minutes of auction of the property "Saveli Gali" declaring Salvador Bartolomeu Monteiro and others to be the highest auction bidder. These documents show that the property Saveli Gali and Oros were independent properties and were in possession of the plaintiff even in the year 1970 and were not private properties of any person.

15. The plaintiff states that after the auction in the year 1970 there was no other auction of these properties held by the plaintiff, nor was any proceeding initiated by the plaintiff in view of directives issued by the Administrator of Comunidades in view of Goa Agricultural Tenancy Act 1971.

16. The plaintiff states that in respect of the part of the property "Oros" bearing Lote No. 43 adicao 'A' 'B' 'C' and 'D' one Raiu Ishwar Gaunso from Bambolim who is the husband of defendant no. 38 and father of defendant no. 39 who is deceased had claimed tenancy rights and obtained a declaration of tenancy in case no. CAJ/ARC/PRC/18/71 from the Mamlatdar of Tiswadi by making late Salvador Bartolomeu Monteiro and the plaintiff as party to the said legal proceedings stating that the plaintiff was the actual owner at that particular time. At this time there were no survey numbers as they exist today since the property was identified by lot numbers and by name of the property.

17. The plaintiff states that from 1971 some more persons also obtained orders as tenants from the Mamlatdar of Tiswadi declaring themselves to be deemed tenants of the property "Saveli gali" under Lote No. 47, 48 (Adicao A and B) and Lote No. 49 of Bambolim village.

18. The plaintiff submits that it is found from the records that an order dated 10/12/1971 came to be made in Case No. CAJ/ARC/PRC/10/AND-11/71 wherein Parshuram Cuncolikar, Luis Rosario, Sebastiao Gomes and Bicario Gomes were declared deemed tenants of the cashew garden namely a) "Saveli Gali", (Segundo Lanco) ('A' and 'B') (second Part) b) "Saveli Gali" Terseiro Lanco (third Part) which relate to the property "Saveli Gali". The plaintiff submits that these orders clearly demonstrate that the property Saveli gali and Oros were owned and possessed by the plaintiff even in the year 1971.
19. The plaintiff crave leave to refer and rely upon Annexure "J" colly are the orders made in the Case No. CAJ/ARAC/PRC/10/EHD-11/71 and 18/1971 the orders dated 20/12/1971, 10/12/1971 made by the Mamlatdar of Tiswadi declaring aforesaid persons as tenants.
20. The plaintiff submits that till the year 1972-73 the properties of the comunidade had Lote numbers with Matriz registration number. The plaintiff crave leave to refer and rely upon the matriz records of these two properties bearing Book no. 19 serial No. 52,53,54,55,56 of Bambolim village. The serial no. 52 to 54 shows boundaries of property Savelli Gali. OROS and Sr. No. 55 and 56 shows boundaries of property however by letter dt. 30/7/2013 Mamlatdar of Tiswadi has informed that the copies cannot be given. The plaintiff crave leave to refer of the said letter. The plaintiff submits that new general survey was carried out between the year 1972-1973 and new survey numbers were given to the property Saveli gali and Oros considering the various land acquisition proceedings.
21. The plaintiff submits that according to this new survey numbers the property Saveli gali corresponds to survey no. 93/1, 2 (part) 3, 4 and the property Oros corresponds to survey no. 89/1, 89/2, 89/3, 90/1, 90/2

and 93/2 (part) of village Bambolim. The plaintiff submits that the survey records were promulgated in the year 1985 in respect of Bambolim Village, Tiswadi, Taluka.. After new survey from 1972-73 the property "OROS" was given different survey numbers and present survey numbers came into existence. The present-survey no. 89/1, 89/2, 89/3, 90/1, 90/2 and 93/2 (part) is original property Saveli gali. The survey no. 93/1, 2 (part) 3, 4 is the original property Saveli gali. The acquired property under survey no. 89/1, 93/1 is recorded in the name of Government and its department and 93/1A is recorded in the name of Gomeco Co-operative Housing Society (93/1A).

22. The plaintiff states that the Government acquired part of the property Oros under Lote 43 Adicao 'B' and the balance area which is not acquired is amalgamated and falls in present Survey No. 93/2 of village Bambolim. Similarly after acquiring part of the property Saveli gali from Lote No. 47 the balance area which is not acquired falls in present survey no. 93/2 of village Bambolim. Thus the present Survey No. 93/2 of village Bambolim has formed by amalgamation of unacquired area from lote no. 43 Adicao 'B' and lote no. 47. The Lote No. 48 Adicao A and adjoining Lote Reservado (Reserved Land) XXIV from the property Saveli gali were fully acquired and Lote No. 49 was partly acquired and balance area which is not acquired falls under two subdivisions of survey no.93 namely survey no. 93/3 and 93/4 of village Bambolim. The plaintiff submits that the remaining part of survey no. 93/4 is also from the property of the plaintiff Lote reservado XXX. The plaintiff has got prepared the sketch/plan of the said property through a surveyor Mr. Prezares Gonsalves who have identified the properties by comparing the old plans of the property Oros and Saveli gali and the present survey plan. The plaintiff crave leave to refer and rely upon the said plan and report dt 24/10/2013 which is produced with the plaint.

23. The plaintiff states that the ownership and possession of the plaintiff of these properties is seen from various land acquisition proceedings and civil proceedings mentioned in this plaint. The plaintiff states that the Government vide notification No. RD/LQN/314/79/ dt. 31/12/1980 acquired land from the property "Oros" and "Saveli Galli" for widening National Highway, Bambolim Siridao road from the new survey no. 89, 90/1 and 2 and 93 of Bambolim village under which Comunidade of Bambolim was shown as owner and compensation paid to the plaintiff. The plaintiff craves leave to refer and rely upon the notification dt. 31/12/1980 and Award LAO/386 dt. 23/3/81 which is produced at Annexure "K".
24. The plaintiff states that said Ishwar Gauns filed Special Civil Suit No. 128/82/A before Civil Judge Senior Division at Panaji claiming that he was tenants of the said property acquired by the Government and that he is entitled for compensation on the suit it was claimed that one Salvador B. Monteiro was the lease holder of the plaintiff and thereafter they become the tenants of the said Salvador B. Monteiro. At the same time Sebastian Gomes, Bicaró Nicalam Gomes, Purshuram Kunkalkar and Madhu Kunkallar filed Special Civil Suit No. 127/1982/A claiming to be tenant of the plaintiff of the property under survey no. 93. Accordingly the Hon'ble Civil Judge Senior Division Panaji by two separate judgment and order dt. 06/08/1986 held that the plaintiff is the owner of the said property and that the said Ishwar Gauns was tenant of the Survey no. 89 and 90/1. The Hon'ble Court directed the plaintiff to pay 50% of the compensation with interest at 6% per annum from the date of filing of the suit till recovery to them. The plaintiff has paid the amount as per decree. The plaintiff craves leave to refer and rely upon the Judgment dt. 6/8/86 which is produced and marked as Annexure "L". At this time late one Dionisio Cardozo claimed as heir of Agustino Cardoso being owner of property under survey no. 90/2 and compensation was paid to him. The plaintiff submits that said Dionisio

Cardozo has filed civil suit as heirs of said Augustino Cardozo bearing Regular Civil Suit No. 35/89/B which was dismissed. The plaintiff filed appeal and the plaintiff was held to be owner of the said property in appeal by Honorable District Court. However in second appeal no. 97/2003 the Hon'ble High Court has remanded the case back to appellate court which is still pending under Regular Civil Appeal No. 73/1994 before District Judge I, North Goa at Panaji.

25. The plaintiff state that in the year 1980 the Goa Medical College filed an application which does not bear any date to the Land Survey Department for inserting the name of Govt. Department in the survey records of acquired land which was received in the Court of Inspector of Surveyor and Land Records under letter No. 34/1/8/LS-RRT/158/44 dt. 3/4/1980. In this application it was prayed to hold inquiry under section 14(3) of Land Revenue Code 1968. The said application was transferred to the Court of Inspector of Survey and Land Records and Registered a case under No. LS/CS/ENQ/11/1/80. Notice was served to the Goa Medical College and Comunidade of Bambolim. The plaintiff submits that husband of the respondent no. ___ filed an intervention application dt. 27/06/1980 on the ground that the acquired land under survey no. 89/1 and 93/1 belongs to him. The husband of the defendant no. 1 subsequently filed withdrawal application dt. 22/09/1981 to the said court and thereafter the Inspector of Survey and Records passed the Judgment and disposed the case vide Order dt. 15/1/1982 thereby bifurcating survey no. 93 into four sub division viz survey no. 93/1 in favour of Goa Medical College on account of acquired land as per award dated 30/3/1966 and the un acquired area was given survey no. 93/2,3 and 4 and also survey no. 89 as survey no. 89/1, 2 and 3. The plaintiff crave leave to produce the said applications for intervention, application for withdrawal filed by Maximo Mergulhao and judgment and order dt. 15/1/1982 which are marked as **Exhibit M Colly**.

26. The plaintiff states that there were other properties of the plaintiff known as Bailem Fondiem, Cunbem Batta and Ohor in village Bambolim belonging to the plaintiff. The plaintiff states that as per the book of Registration of definite calculation of redeeming of FOROS (Ground rent) of the properties of Book Tombo 2nd B of Comunidade of Bambolim shows that in the year 1939 FORO (ground rent) of 20 installments was paid under item no. 44 by Joaquim Paulo Figereldo of St. Cruz on behalf of Maria Conceicao Rodrigues of the property called Bailem Fondiem, Cunbem Batta, Ohor. The said parts for which ground rent was paid on behalf of Maria Conceicao Rodrigues are as under:-

- 1 /4th part of Verica of Bailem Fondiem.
- Another 1/4th part of the said Verica.
- Another Verica of cashew plantation and OHOR
- One Xir of the property known as Bucolem.
- One piece of coconut garden "Cornacho" and two remaining pieces.
- 5 pieces of coconut garden called Cunbem Batta.
- One half of the first Verica called Bailem Fondiem.
- 8 pieces owned jointly with his cousin Martinho Rodrigues and house-half and half.
- One piece of coconut garden 'Cunbem Batta'.
- Two Verica of cashew plantation known as "Bailem Fondiem"

The plaintiff crave leave to refer and rely upon the extract of records of Tombo 2nd B of the year 1939 along with English Translation and which is produced at Annexure "N"

27. The plaintiff submits that Verica means small part of the property. Hence the aforesaid parts/verica leased to said Maria Conceicao were small parts of the original properties known as Bailem Fondiem, Cunbem Batta and Ohor originally belonging to the plaintiff and these properties are not the property Saveli Gali and Oros since the property Saveli Gali and Oros have their separate identification. The plaintiff

submits that once the properties are granted by the Comunidade following the procedure under the Code of Comunidade, the said properties are not recorded in the records of the comunidade which is called as Tomboçao. Hence except the above records, the plaintiff at present is not able to trace out any other document of grant of the property under name Bailem Fondiem, Cunbem Batta and Ohor to said Maria Conceicao Rodrigues. However it is confirmed that above properties are not Saveli Galli and Oros.

28. The plaintiff submits that the aforesaid records of the year 1939 of the plaintiff does not refer to the properties described as Saveli Galli and Oros nor they are not from the property known as Saveli Galli and Oros and the said proceedings are not in respect of suit property in the present suit. Besides this, the said record is not a title document but payment of ground rent and there is no document of grant of "Aforamento" by the plaintiff in favour of said Maria Conceicao Rodrigues. In the terms of law "Aforamento" is a transaction between the owner and a stranger. In case of "Aforamento" the grantee is entitled to gift, mortgage the property, the transferee being subject to payment of foro (ground rent). However the above records is not a grant to Maria Conceicao Rodrigues and no title or ownership has been conferred on said Maria Conceicao Rodrigues in respect of the properties mentioned in the aforesaid records of the comunidade.

29. The plaintiffs states that the above referred records, auction proceedings, cases filed by various persons and following records will demonstrate that late Alexandre Rodrigues, Maria Conceicao Rodrigues or Maximo Mergulhao were not owners of the property called as Saveli Galli and Oros including the suit property which is part of the said property called as Oros. Besides this it is found from the records of the Comunidade that in the year 1978 land of the comunidade under survey No. 32 was acquired by the Government of Goa for the purpose

of extension of Goa Medical Collage. Under the said land acquisition the plaintiffs property was acquired and after passing the award the compensation was paid to the plaintiff. In these land acquisition proceedings in Land Acquisition Case No. 2/1988 and 104/1994 said Maximo Mergulhao had claimed ownership in respect of survey no. 32/1 of village Bambolim by producing a purported certificate allegedly of the year 1904 allegedly issued by the Clerk of the Comunidade in the year 1904. However said Maximo Mergulhao could not establish his title and the court has come to the conclusion that the said certificate/document produced by him were in relation to the acquired property Bailem Fondiem. The said claim was based on the same certificate of the Clerk allegedly of the year 1904 allegedly issued by the Clerk of the Comunidade in the year 1904. The Hon'ble District Court has held that the plaintiff is owner of the said property and compensation was paid to the plaintiff. The husband of the defendant no. 3 late Maximo Mergulhao had claimed that he is owner of the said property on the basis of the said certificate of the clerk refereed above. It is pertinent to note that said Mergulhao had claimed that the acquired property is Bailem Fondiem and same certificate was relied as documents of title of the property Bailem Fondiem. The plaintiff crave leave to refer and rely upon the Judgment dt. 22/11/1993, 24/12/2002 which is produced at Annexure "O"

30. The plaintiff submits that the part of the property of the plaintiff called Fondiavelly Gally under Lote no. 38 was acquired by the Government in the year 1986. The said land was plot no. 109 having an area of 17975 sq mts falling under survey no. 44 of village Bambolim which was acquired for institutional complex by the Government. One Mr. Govind Fernandes and Maximo Murgulhao had claimed the compensation claiming the said land. In this proceedings the plaintiff was declared as owner and Maximo Margulhao could not prove his right. The plaintiff crave leave to refer and rely upon the Judgment dt.

31/8/2000 in LAC 98/1987 which is produced at Annexure "P". This fact is stated to demonstrate that said Maximo Mergulhao was claiming most of the properties of the comunidade without having any title documents.

31. The plaintiffs submit that in another Land Acquisition Case No. 9/1981 Maximo Murgulho had claimed ownership in respect of survey no. 46/1 of village Bambolim. The said claim was based on same certificate of the Clerk issued in 1904. However said Maximo Mergulhao could not establish his title and the court has come to the conclusion that the document/Certificate produced by him were in relation to the property Bailem Fondiem. The Hon'ble District Court has held that the plaintiff is owner of the said property. The plaintiff crave leave to refer and rely upon Judgment dt. 24/8/1993 in LAC 9/1981 and 31/8/2000 in LAC 100/87 which is produced at Annexure "Q." This fact is stated to demonstrate that said Maximo Mergulhao was claiming the said properties of the comunidade without having any title documents.

32. The plaintiff submits that Government vide notification NO. 22/11/82-RD dt. 26/12/1984 acquired land under survey no. 43/2,32/1,44,45 of village Bambolim for institutional complex at Bambolim, Taleigao and Dona Paulo Goa University published in Government Gazette and award was passed in Case No. 1/8/85-Ac dt. 15/10/1985. In this notification the name of the Maximo Mergulhao was shown as owner of the property under various survey numbers of Village Bambolim of which the plaintiff was actual owner and the plaintiffs name was not shown. Similarly in various survey numbers acquired from village Calapur of Comunidade of Calapur, name of Maximo Mergulho was shown as owner. However the plaintiff filed objection claiming ownership and disputes were registered under Land Acquisition Act. Said Maximo Mergulhao had also claimed right in the property of Comunidade of Calapur based on the Certificate dt. 18/3/1904

purportedly issued by Comunidade of Bambolim, ie. the plaintiff. The Land Acquisition Officer had rejected this claim of Maximo Mergulhao as owner of the property of the plaintiff as well as Comunidade of Calapur. The plaintiff crave leave to refer and rely on award of Land Acquisition officer dt. 4/10/1985 which will be produced when required in which it is stated that said Maximo Mergulhao was claiming the properties of the comunidade without having any title documents and the said certificate of the year 1904 was held to be not a title document.

33. The plaintiffs submit that after this, since the dispute was referred under section 30 of the land Acquisition Act for decision on ownership in Land Acquisition Case No. 96/1987 said Maximo Mergulhao had claimed ownership in respect of survey no. 43/2 of village Bambolim. The said claim was again based on the same certificate of the Clerk purportedly of the year 1904. However said Maximo Mergulhao could not establish his title and the court has come to the conclusion that the document/ Certificate produced by him were in relation to the property Bailem Fondiem. The said claim was based on above referred certificate of the Clerk. The Hon'ble District Court has held that the claim of Maximo Mergulhao was not maintainable as he was not the owner of the said property. This judgment proves that the Certificate purportedly of the year 1904 is not in relation to the property Saveli galli or Oros but was in relation to different property Bailem Fondiem. The plaintiff crave leave to refer and rely upon Judgment dt. 7/8/1995 which is produced at Annexure "R".

34. The plaintiff submits that said Maximo Mergulhao had also claimed ownership of property under survey no. 32/1 of village Bambolim on the basis of the same certificate, which is part of another property of the plaintiff and had taken compensation from the Government after acquisition of the said land. The plaintiff had challenged the payment of

compensation to Maximo Mergulhao by filing Writ Petition No. 2/1988. By judgment dt. 7/6/1988 the Hon'ble High Court has held that the plaintiff was the owner of the said property and compensation was wrongly paid to Maximo Mergulhao. Hence the Hon'ble Court directed Maximo Mergulhao to refund the entire compensation and the same was paid to the plaintiff. The plaintiff crave leave to refer and rely upon Judgment dt. 7/6/1988 which is produced at Annexure "S". This fact is stated to demonstrate the false claim of said Maximo Mergulhao.

35. The plaintiff states that in the year 1994 said Maximo Mergulhao who is husband of defendant no. 1 was trying to claim part of the property Oros under present survey no. 89/3 of village Bambolim. Therefore the plaintiff filed Special Civil Suit No. 222/94/A against late Maximo Mergulhao before Civil Judge Senior Division at Panaji seeking amongst other relief, declaration and permanent injunction in respect of the said survey number. The said suit was filed on 1.12.1994 for following reliefs:

36. For a declaration that the property identified under Survey No. 89/3 forms part of property 'OROS' bearing lot No. 43, Adicao 'A' as per Book Tombo-1.

37. For a permanent injunction, restraining the defendant, his servants, agents, attorneys, and/or any other person or persons claiming through him from (i) carrying on any further construction in the suit property and (ii) alienating the said property in any form whatever, including claiming, mortgaging or creating third party rights. The plaintiffs crave leave to refer and rely upon the copy of the plaint when required at the time of evidence.

38. The plaintiff submits that the said suit was based on the title of the Comunidade as inscribed/ recorded in Tombo Book 1 shown in the

Tombacao (Plan/Map). The cause of action to file the suit was due to illegal developmental works attempted by strangers in the said property.

39. The plaintiff submits that in this suit late Maximo Mergulhao who is husband/predecessor of defendant no. 1 claimed ownership of the said property under survey no. 89/3 of village Bambolim and founded his claim on the purported Certificate allegedly issued by the then Escrivo de Comunidade of Bambolim (Clerk) dated 18.3.1904 and stated that the property was leased by the plaintiff to one Mr. Alexandre Rodrigues from whom he inherited the same being son in law of daughter of Alexandre Rodrigues namely Maria Conceicao Alexandre Rodrigues married to Gregorio Germano Mergulhao.

40. In this suit it was stated by late Maximo Mergulhao that developmental work was being done by one Raghurai Tamba as his agent i. e. defendant no. 2 and 3 herein. The plaintiffs crave leave to refer and rely upon the copy of the written statement in the said suit when required at the time of evidence.

41. The plaintiff submits that in the said suit after settlement of issues the matter was posted sine die in terms of directions from the District and Sessions Judge Panaji. Thereafter on 12.5.1998 the suit was allotted to the 'B' Court for disposal in terms of the directions from the District and Session Judge, Panaji.

42. The plaintiff submits that during the pendency of the suit the said defendant Maximo Mergulhao expired and in the said suit on 19.11.1998 an application was made by the plaintiff to bring his wife, Smt. Dionisia Dias e Mergulhao i. e. defendant no. 1 herein on record of the case as legal representative of the deceased defendant Maximo Mergulhao. Upon no objection given by the Advocate for the defendant

in the said suit, the said Dionsia was brought on record. The plaintiff submits that the said Maximo had a son by name Emerico who was not brought on record. The plaintiff submits that it is found that on the same day, i.e. on 19.11.1998, compromise terms were filed in the said suit to compromise/settle the dispute between the plaintiff and the said Dionisia Mergulhao. The plaintiff states that there was no resolution of the Managing Committee/ the Board and/or the approval/resolution of the General Body of the plaintiff and/or the approval/permission from the administrative Tribunal to compromise the suit as required under the Code of Comunidades.

43. The plaintiff submits that by order passed on 21.11.1998 the said compromise terms filed in the suit were ordered to be taken on record and it was also recorded that the compromise was lawful since the parties had voluntarily signed the compromise terms. The plaintiffs crave leave to refer and rely upon the copy of the said compromise terms dated 19.11.1998, the order passed on 21.11.1998 and the Decree dated 21.11.1998 in Special Civil Suit No. 222/94/B before Civil Judge Senior Division at Panaji. Which is marked **Annexure T** collectively.

44. The plaintiff submits that by the said compromise terms and the Consent Decree, it stated that it was agreed that the plaintiff shall not claim the property surveyed under No. 89/3 and also shall not claim properties surveyed under Nos. 90/1, 93/2, 93/3 and 93/4 of village Bambolim. The plaintiff submits that in the compromise terms it is stated that the Comunidade relinquished their claim to the properties surveyed under Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 admeasuring about 1,35,000 sq.mts. for consideration of 5 plots of developed land admeasuring about 252 sq.mts. each, totaling to 1260 sq.mts. to be allotted within 36 months of the execution of the consent terms. The plaintiff submits that 40 plots of land admeasuring about 1,35,000 sq.mts. each, were stated to be alloted within 36 months of the execution of the consent terms.

that Gaunkars of the Comunidade of Bambolim were not parties to the suit and they have/had nothing to do with the compromise in the suit or they were not aware of this compromise. Further there is no constituted body/institute/person called Association of Gaoncars.

45. The plaintiff submits that these consent terms in the said suit were signed by special Attorney of the Comunidade Mr. Jeronimo Monteiro with Mrs. Dionisia Dias e Mergulhao and Shri. Raghurai Tamba ie defendant no. 2 and 3 compromising the suit without seeking approval of the General Body of the Comunidade or of the Managing thereby keeping the Comunidade in dark. The suit was compromised without seeking any approval or permission from the Administrative Tribunal in Articles 154(3), 349 and 350 of the Code of Comunidades, 1961. The plaintiff submits that it is believed that the then managing committee of the plaintiff had connived with the defendant no. 2 and 3 and had drawn the consent terms illegally. This compromise and consent decree was never known to the gaunkars or the plaintiff till the year 2008 and the plaintiff came to know of the same as stated hereunder.
46. The plaintiff submits that in November-December 2008 the plaintiff received representations from its components/Gaonkars to stop development in the properties belonging to the comunidade wherein it was alleged that the development is being illegally started in the property of the plaintiff and the property belongs to the plaintiff. Therefore by letter dated 10.12.2008 the plaintiff requested the Village Panchayat of Curca, Bambolim and Talaulim to furnish documents produced by the persons who had started development/construction in the properties/land of the comunidade. By letter dated 2.1.2009 the Village Panchayat furnished documents namely the aforesaid Consent Decree dated 21.11.1998. The plaintiff crave leave to refer and rely upon the said letters dated 10.12.2008 and 2.1.2009 which are in records

of CMA 6/2010. Thus for the first time the plaintiff got the knowledge of the said decree in January 2009.

47. The plaintiff states that the magnitude of the land scam and inclusion of 4 other properties of the comunidade in the compromise was known to the managing committee of the plaintiff only in January 2009 when the Comunidade received the Consent Decree dated 21.11.1998 from the Village Panchayat of Curca, Bambolim and Talaulim.

48. The plaintiff submits that since the managing committee of the plaintiff had not started any action, some of the Gaunkers of the plaintiff filed writ petitions No. 506/2009, 557/2009, 577/2009 and 657/2011 before the Honorable High Court alleging fraud and challenging the decree passed in the suit and other grounds about prohibition of development of tenanted land. The plaintiff submits that simultaneously some Gaunkars filed special civil suit no. 66/2009 before the Honorable District Court challenging the illegalities and the plaintiff is made as the defendant in the said proceedings. The plaintiff craves leave to produce the certified copy of the said plaint at the time of evidence.

49. The plaintiff submits that the writ petitions No. 102/2009 filed by the Goankars was decided by the Honorable High Court by judgment dt. 18/2/2009 wherein the Administrator of Comunidade Central Zone and Dy. Collector at Panjim were directed hold enquiry. The plaintiff crave leave to refer and rely upon Judgment dt. 18/2/2009 which is produced at Annexure "U"

50. The plaintiff submits that as per the order of the Honorable High Court dt. 18/2/2009 in W.P. No. 102/2009, the Administrator of Comunidades has passed order dt 3/7/2009 observing that there is fraud played to grab the plaintiffs property and the comunidade should

initiate proceedings. The plaintiff crave leave to refer and rely upon order dt. 3/7/2009 which is produced at Annexure "V".

51. The plaintiff submits that after this order of the Administrator of Comunidade, the then Managing Committee of the plaintiff filed Miscellaneous civil application no. 6/2010 for recall of decree in special civil suit no. 224/1994 since the property of the plaintiff were sought to be illegally claimed by the defendant no. 1 and the plaintiff was not aware of the said decree. The said application is still pending. The plaintiff crave leave to refer and rely upon the said application.
52. The plaintiff submits that in this application the plaintiff has stated that the compromise dated 19.11.1998 ordered to be recorded on 21.11.1998 is unlawful and the consequent Decree dated 21.11.1998 is null and void and required to be recalled for following reasons: That Approval/permission/consent required under the Code of Comunidade has not been obtained to compromise the suit. That the special Attorney Jeronimo Monteiro and/or the Advocate engaged for the plaintiff had no authority to compromise/settle the suit on behalf of the Comunidade. That the finding/opinion of the learned judge that the suit stood lawfully compounded/compromised because the parties had signed voluntarily does not satisfy predicates of Order XXIII Rule 3. That the special Attorney of Comunidade Shri. Jeronimo Monteiro, in collusion with the defendant no. 1 and constituted Attorney Shri. Raghurai Tamba i.e. defendant no. 3 and the advocate for the plaintiff, played a fraud on the plaintiff by filing petition for compromise without obtaining necessary permission/approval from the Administrative Tribunal and deliberately deviating from the procedure described under Articles 154(3), 349 and 350 of the Code of Comunidades. That the compromise entered into between the Comunidade and Dionisia Dias e Mergulhao i.e. defendant no. 1, is void and is a nullity in absence of permission/approval from the Administrative Tribunal and therefore cannot be deemed to be lawful

within the meaning of explanation to Rule 3 of Order XXIII. That the explanation to Order XXIII Rule 3 requires the Court to be first satisfied that the agreement or compromise which has been entered into by the parties is lawful and expected to apply its judicial mind while examining the terms of the agreement and to see that it is entered into lawfully i.e. according to the law relating to the matter namely the Code of Comunidades. That the learned Judge did not satisfy himself to find out that the plaintiff had permission/approval from the Administrative Tribunal to compromise the suit under the Code of Comunidades especially in absence of any statement to that effect in the compromise terms dated 19.11.1998 or any document to the effect filed along with the compromise terms. That the consent terms/agreement/compromise itself is fraudulent because it has been entered into without obtaining necessary permission/approval, consent of the Administrative Tribunals required under Articles 154(3), 349 and 350 of the code of Comunidades and is therefore deemed to be void within the meaning of the explanation to the Rule 3 and as such not lawful. That the action of the said Jeronimo and Advocate for the plaintiff to agree to include Survey Nos. 90/1, 93/2, 93/3, and 93/4 is fraudulent because the lands surveyed the said numbers were not subjects matters of the suit and consequently the said fraudulent action renders the Consent Terms dated 19.11.1998 and the Order dated 21.11.1998 and the consequent Decree void, being nullity. That the clause in the compromise terms to agree to allot 40 plots each admeasuring about 252sq.mts. to certain 40 gaoncars who are not parties to the suit No.222/94/B is illegal, null and void rendering the compromise unlawful in the eyes of law and non-est. That the learned Judge exercised jurisdiction without satisfying himself about compliance of the relevant provisions of the Code of Comunidade as required under Rule 33 of Order XXIII. That the learned Judge ignored/overlooked that the Comunidade/plaintiff had not obtained approval/permission/authorization from the Administrative Tribunal. That the compromise terms dated 19.11.1998, the order dated

21.11.1998 holding that the compromise is lawful and consequent Decree dated 21.11.1998 are illegal and null and void for want of authority to the Special Attorney and the advocate for the Comunidade to compromise the suit. That the compromise dated 19.11.1998, the order dated 21.11.1998 holding that the compromise is lawful and the consequent Decree passed on 21.11.1998 is void under the Indian Contract Act 1872 and therefore is not deemed to be lawful within the meaning of Explanation to Rule 3 order XXIII of the Code of Civil Procedure. The plaintiff submits that the said suit filed by the gaunkars and application for recall of the decree filed by the plaintiff is still pending before the respective court. The plaintiff crave leave to refer and rely upon said plaint in the suit and application which will produced when required.

53. The plaintiff submits that as per the direction of the Hon'ble High Court in writ petitions No. 102/2009 under judgment dt. 18/2/2009, the Deputy Collector initiated enquiry and passed order dt 1/8/2011. The plaintiff submits that at this time other writ petitions no. 506/2009, 557/2009, 577/2009 and W. P. No. 657/2011 were pending before the honorable High Court.

54. The plaintiff submits that this order of the Deputy Collector dt. 1/8/2011 was produced before Hon'ble High Court in writ petitions no. 506/2009, 557/2009, 577/2009 and 657/2011. Considering this order and the facts of those petitions the Honorable High Court by judgment dt. 29/3/2012 dismissed these petition observing that the parties in the petitions will have to approach appropriate authority/Court as disputed facts are involved in the petition. It is to be noted that the order of the Administrator of Comunidade dt 3/7/2009 was not placed before the honorable High Court. The plaintiff crave leave to refer and rely upon the said Judgment dt. 29/3/2012 in writ petitions no. 506/2009, 557/2009, 577/2009 and 657/2011 and order of the Deputy Collector dt.

1/8/2011 which is produced in writ petitions no. 506/2009, 557/2009, 577/2009 and 657/2011 at Annexure W.

55. The plaintiff submits that thereafter, the plaintiff made representation to the Director of the Directorate of Settlement and Land Records Panaji dt. 9/10/2012 which was routed through Administrator of Comunidades, Panaji to issue corresponding certificate of the said property Oros and Saveli Gali based on Lotes as shown in the Planta de Cadastral of the Comunidade of Bambolim in order to establish that the suit properties are of the plaintiff. The same was issued by Superintendent of Survey and Land Record from the office of the Director of the Directorate of Settlement and Land Records, Government of Goa vide letter dt. 5/12/2012 along with the Plan. The plaintiff crave leave to refer and rely upon letter dt. 5/12/2012 and dt. 9/10/2012 which is produced at Annexure "X" Collectively. The plaintiff submits that the said certificate shows as the original property under:-

- a. Lotes no.49 (Planta No. 15037) survey no. 93/1part, 93/4,93/3part,93/2part and 103/1 (part)
- b. Lotes no.48 (Adicao A) (Planta No. 15036) survey no. 93/1-A, 93/1(part) and part of road
- c. Lotes no.48 (Adicao B) (Planta No. 15036) survey no. 91/25(part), 91/26(part), 91/21(part), 91/22(part), 91/23(part), 91/24(part), 92/1, 92/1-A & part of road
- d. Lotes no.43 (Adicao A) (Planta No. 15036) survey no. 89/1(part), 89/3, 89/3-A, 89/3-B, 89/3-C, 89/3-D, 89/3-E, 89/3-F, 89/3-G, 87/2(part), 87/2-E(part), 87/2-D(part), 88/13(part), 88/21(part), 88/20(part), 88/6(part), 88/17(part), 88/16(part), 88/5(part), 88/15(part), 88/14(part), 88/2(part), 88/22(part) and part of road
- e. Lotes no.43 (Adicao B) (Planta No. 15036) survey no. 93/1(part), 93/2(part), 107/7(part), 107/11(part) and 107/8(part)
- f. Lotes no.43 (Adicao C) (Planta No. 15036) survey no. 89/1(part),

- g. Lotes no.43 (Adicao D) (Planta No. 15036) survey no. 90/1(part) & 90/2
- h. Lotes no.47 (Planta No. 15036) survey no. 93/1 (part), 93/2(part), 106/1(part), 107/1(part) and 107/2(part)

56. The plaintiff submits that as stated above, the Comunidade is the rightful owner of the properties surveyed under Nos. 89/1, 2 and 3, 90/1 and 2, 92, 93/1, 93/2, 93/3, and 93/4 which is clear from the entries in the Tombo Book 1, planta, auction proceedings, tenancy proceedings, Form II (Gunakar Book) of the Directorate of Settlement and Land Records (Area Book of Bambolim Village Tiswadi Taluka) and the various order in land Acquisition cases and the certificate dt 5/12/2012 issued by Inspector of Survey from the office of the Director of the Directorate of Settlement and Land Records, Government of Goa. The plaintiff submits that the entries in the Tombo Book I and the judgments of the Courts establish the title of the Comunidade to these properties which include present survey no. 89/1, 89/2, 89/3, 90/1, 90/2, 93/1, 93/2, 93/3, 93/4 and this proves that the property saveli galli, Oros were independent properties and not the properties mentioned in the purported certificate of the year 1904 relied upon by the defendant no.3 and her husband.

57. The plaintiff submits that it is seen that in the year 1982 survey no. 89 and 93 were sub divided as survey no. 89/1, 2 and 3 and 93/1, 2, 3, and 4 as per the judgment and order of the then Inspector of Survey and Records dt. 15th January 1982 on account of separation of the acquired land by the Government in Land Acquisition Case thereby retained survey No. 89/1, 89/2 as acquired properties and retained the unaquired land in 89/3 (part) and 93/1(part), 93/2 (part), 93/3 (part) and 93/4 (part) with the plaintiff and Survey no. 90 was bifurcated as survey No. 90/1 and 2 which is part of Lote no.-43 Adicao 'D' and is not fully acquired. The plaintiff submits that the entries in Tombo 1 and

the judgment of the Court established the title of the Comunidade to these properties which were left without acquisition and it belong to the plaintiff. However in the compromise terms dated 19.11.1998, the order passed on 21.11.1998 and the Decree dated 21.11.1998 in Special Civil Suit No. 222/94/B before Civil Judge Senior Division at Panaji it was sought to be projected that these properties does not belong to the plaintiff and the plaintiff is relinquishing its rights in favour of the defendant no. 1.

58. The plaintiff states that after the judgment of the Hon'ble High court dt. 21/3/2012 the new managing committee of the plaintiff started investigating about the whole transaction and after inquiry it is revealed Special Civil Suit No. 15/01/A came to be instituted by Mr. Raghurai Tamba, defendant no. 3, the power of Attorney of Mr. Dionisia Dias E Mergulhao defendant no. 1 herein before the Civil Judge Junior Division at Panaji against the original declared tenants in Tenancy Case no. CAJ/ARC/PRC/18/71 before the Mamlatdar who was Raiu Ishwar Gaunso predecessor of defendant no. 39 in respect of survey no. 89/3, 90/1 and 2. The plaintiff submits that it was found that the fraud was played in this suit which is apparent on the face of the record and there was collusion between the parties. The plaintiffs state that the same parties who have been declared to be tenants, (more particularly Raiu Ishwar Gaunso who had earlier filed a Civil Suit No. 127/1982/A before the Civil Court, wherein the Court had directed the Comunidade of Bambolim to pay 50% of the Land Acquisition compensation paid by the Government of Goa to them as they were declared tenants by the Mamlatdar) have made false statement. In this suit different stand was taken by them and it is declared that the defendants in the said suit do not have any right in the suit property. This decree is illegal and fraudulent decree to come out of the laws prohibiting development of tenanted property and in order to allow development and sale of the property by the defendant no. 2 and 3. As on this date the defendant no.

2, 3 had agreement executed in the year 1989 with the husband of defendant no. 1 and was holding their power of attorney. The plaintiff crave leave to refer and rely upon judgment and decree dt. 11/4/2001 which is produced at **Annexure "Y"**.

59. The plaintiff state that this suit instituted on behalf of defendant no. 1 by defendant no. 3 against Raiu Ishwar Gaunso @ Chuddu Ishwar Gaunso and Mrs. Tulshi Ishwar Gaunso before the Civil Judge Junior Division at Panaji registered as Special Civil Suit No. 15/01/A came to be decreed and Judgment and decree dated 11/4/2001 pursuant to admission of the claims made by the said defendants with the direction that the name of Raiu Ishwar Gaunso @ Chuddu Ishwar Gaunso was to be deleted from Form I & XIV tenants column, under survey no. 90/1 of Bambolim Village. The plaintiff submits that by this decree a direction was obtained to the Mamlatdar to delete the name of Raiu Ishwar Gaunso from Form I & XIV of the property surveyed under survey no. 90/1 of Bambolim Village. The plaintiffs state that no order for deleting the name of Raiu Ishwar Gaunso could have been made because Raiu Ishwar Gaunso was declared to be a tenant under the Goa, Daman and Diu Agricultural Tenancy Act in case no. CAJ/ARC/PRC/18/71 and that the law specifically mandates that if at all tenancy rights have to be surrendered they have to be surrendered before the Mamlatdar under the Agricultural Tenancy Act, or, the persons have to obtain negative declaration as to the status of the tenants before the Mamlatdar under section 7 of the Goa Agricultural Tenancy Act. Besides this the defendant no. 1 to 3 did not disclose agreement of sale dt. 29/8/1989 to the Hon'ble Court. Hence the defendant no. 1 to 6 played this fraud by suppressing the agreement of sale.

60. The plaintiff found that after this, names of the defendant no. 4 to 37 are got included in survey records who claim to have purchase plots from the defendant no. 1 to 3 and the title claimed by the defendant no. 1

from the purported certificate of the year 1904. It is claimed that subsequent to the death of Mr. Maximo Mergulaho on 26/03/1998 the defendant no. 1 became the sole owner of the said property and had an agreement with defendant no. 2 and selling the same to the defendant no. 4 to 37. It is found that defendant no. 3 is representing as Power of Attorney of Defendant no. 1 as well as Partner of Defendant no. 2. The plaintiff crave leave to refer and rely upon one sale deeds dt 22/6/1998 which is produced at **Annexure Z**.

61. The plaintiff submits that similar sale deeds are executed by the defendant no. 1 to 3 with defendant no. 4 to 37 claiming to be of suit property relying on certificate issued by Clerk Marcos Vicente D'Araujo of the year 1904. The plaintiff submit that these sale deeds are null and void. The defendant no. 1 to 3 are relying on the certificate of clerk which is in relation to following property namely;-

- a. 1/4th part of Verica of Bailem Fondiem.
- b. Another 1/4th part of the said Verica.
- c. Another Verica of cashew plantation and Ohor
- d. One Xir of the property known as Bucolem.
- e. One piece of coconut garden "Cornacho and two remaining pieces.
- f. And further in another title: 5 pieces of coconut garden called Cunbem Batta.
- g. And yet in another title one half of the first Verica called Bailem Fondiem.
- h. 8 pieces owned jointly with his cousin Martinho Rodrigues and house-half and half.
- i. One piece of coconut garden 'Cunbem Batta'.
- j. And two Verica of cashew plantation known as "Bailem Fondiem" and that the following properties are found entered in the name of his daughter Maria Conceicao Rodrigues.
- k. One Verica of cashew plantation.
- l. One piece of Coconut garden called 'Cunbem Batta'.

- m. One Fourth part of Verica Bailem Fondiem.
- n. Another one fourth of Verica.
- o. Five pieces of coconut grove called Cunbem Batta.
- p. One half of the first Verica called Bailem Fondiem and Ohar
- q. 8 pieces jointly held with her cousin Martinho Rodrigues.
- r. House shared half and half.
- s. 2 Verica of cashew plantation called Bailem Fondiem with exception of the plot one Xir of the property known as "Bucolêm" and one piece of Coconut garden 'Cornacho' as it is sold to Sebastiao Figueiredo.

62. The plaintiff submits that it is claimed by the defendant no. 1 that late Alexandre Rodrigues left behind his sole and universal heir Maria Conceicao Rodrigues. It is claimed that Gregorio Germano Mergulhao married to Maria Conceicao Rodrigues and as such inherited the estate of late Alexandre Rodrigues. Further it is claimed that the Gregorio Germano Mergulhao had two sons-Emmanuel Joveniano Paxiao Mergulhao and Francisco Aleixo Dore Mergulhao and that Francisco Aleixo Dore Mergulhao died a bachelor.

63. The plaintiff submits that it is claimed that after the demise of Emmanuel Joveniano Paxiao Mergulhao who was married to Maria Gertrudes de Pelagrina Viegas, Mr. Maximo Mergulhao and his wife Mrs. Dionisia Dias e Mergulhao became the sole heirs to inherit the estate left behind by their grandmother Maria Conceicao Rodrigues married to Gregorio Germano Mergulhao.

64. It is claimed that subsequent to the death of Maximo Mergulhao on 26/03/1998 and in view of the Deed of Relinquishment dt. 13/05/1998 executed by the heirs of relinquishing their rights in respect of the properties of Mr. Maximo Mergulhao and Mrs. Dionisia Dias e Mergulhao became the sole owners of the said property.

65. The plaintiff submits that as stated in the preceding paragraphs of this plaint, the aforesaid certificate of the clerk referred in the sale deed is not in relation to the property "Saveli Gali" or "Oros" and it is evident that the property Bailem Fondiem, Ohor and Cunbem Batta are separate and independent properties. This is evident from the fact that survey no. 56 and its sub-divisions is recorded as Bailem Fondiem. It is also found that the defendant no. 3 has executed deed of sale dt. 18/07/2007 as confirming party with M/s Milrock development company in respect of plot under survey no. 52/8 of Village Bambolim which is shown as Verica Bhailan. The recital of this sale deed does not refer to any acquisition of title of the said property through any person. The records of the said survey number shows that in Form I & XIV the name of the property is recorded as Verica Bhailan. The plaintiff submits that the property under the said sale deed is part of the property Bailem Fondiem and is not related to the property Saveli Gali and Oros. The Plaintiff craves leave to refer and rely upon the sale deed dt. 18/07/2007 which is produced at **Annexure Z-1**.

66. The plaintiff submits that in the sale deeds executed by the defendant no. 1 to 3 it is falsely contended that property called Bailem Fondiem, Ohor is owned by defendant no. 1. However as per the records of the plaintiff which is "Livro do Titulos", in the year 1939 the part of the property called Bailem Fondiem, Ohor were leased to late Maria Conceisao Rodrigues. This certificate does not mention the name of the property as "Bailem Fondiem, Ohor". Thus the property mentioned in the records of the Comunidade in the year 1939 in the name of Maria Conceisao Rodrigues was different property and it was only a lease given to Maria Conceisao Rodrigues. Hence Alexander Rodrigues or his daughter Maria Conceisao Rodrigues did not acquire any title or ownership right in the property Saveli gali, Oros or any property of the plaintiff. In fact records of the plaintiff shows that in the year 1970 last auction was held in relation of property Saveli Gali, Oros and other

properties of the plaintiff and several persons claimed tenancy rights before the Mamlatdar, which proves that the property Saveli Gali and Oros were never possessed by defendant no. 1 or her late husband and their predecessors.

67. The plaintiff submits that as per the records of the Comunidade in the year 1939 the daughter of late Alexander Rodrigues namely Maria Conceisao Rodrigues paid 20 years FORO by receipt no. 44 in respect of the property mentioned in purported certificate of the year 1904 which was leases to her father late Alexander Rodrigues and Maria Conceisao Rodrigues were never allotted the property of the Comunidade to acquire right of ownership. The plaintiff submits that considering this records of the Comunidade, it is clear that late Alexander Rodrigues and Maria Conceisao Rodrigues were never owners of the property mentioned purported in the certificate dt. 1904 or 1939 relied upon by the defendant no. 1 to 3 and what was given to them was a lease of different property and not the property called Oros and Saveli Gali. Therefore they were not owners of any of the property belonging to the Comunidade and no rights of ownership was acquired by late Alexander Rodrigues or Maximo Mergulau to the property called Oros and Saveli Gali which are under lote numbers referred above and the new survey numbers referred above which include survey no. 89/3 and 90/1 of village Bambolim. Hence the sale deeds executed by defendant no. 1 to 3 with defendant no. 7 to 37 are without authority, right, title and does not convey any right of ownership of the suit property to defendant no. 1.

68. The plaintiff submits that the certificate of the Clerk of the Comunidade relied upon by the defendant no. 1, 3 to 5 as title document is not in relation to suit property "Saveli Gali" or "Oros". There is no records of allotment or lease of the year 1904 with the plaintiff and the records of 1939 shows that it is in relation lease for

auction of part of different properties of the Comunidade and there is no grant by following the due procedure in favour of late Alexandre Rodrigues from whom the defendant no. 1 and her husband claimed inheritance. This certificate do not show that the payment is made in respect of suit property but the same is in respect of different small plots in the property called Bailem Fondem and Ohor and Cumbem bhat. In the sale deeds it is deliberately mentioned that the property sold is called as Bailem Fondem or Ohor when in fact all these names are of different independent properties of the plaintiff and the property Saveli Gali is not referred in the purported certificate of the Clerk of the Comunidade of the year 1904 which is relied upon by the defendant no. 1. The plaintiff has records of action of 1971 referred above wherein the property Saveli galli and Oros were auctioned and claim of tenancy was made by various persons, which establish that these properties were never allotted to late Alexandre Rodrigues in year 1904. The plaintiff has records of 1939 which shown that in the year 1939 Foro was paid by Maria Conceicao paid towards lease of part of property which is different property. However this record is not grant of property Saveli Gali and Oros. Hence the said certificate does not confer any right in favour of any person. Hence the plaintiff is entitled for a declaration that the said certificate is not title certificate in respect of property Oros including survey no. . 89/3 and 90/1 of Village Bambolim.

69. The plaintiffs state that in the aforesaid suit, namely Special Civil Suit No. 15/01/A the defendant no. 38, 39 and others who were declared as deemed owners by the Mamlatdar under the Goa, Daman and Diu Agricultural Tenancy Act in case no. CAJ/ARC/PRC/18/71 and in tenancy case no. CAJ/ARC/PRC/10/AND-11/71, have declared that they have no right of tenancy and defendant no.1 has obtained a negative declaration that they are not tenants of the suit land belonging to the Comunidade of Bambolim. The plaintiff state that the Mrs. Deonisia Dias e Mergulhao i.e. defendant no. 1 was represented by the

defendant no. 3 and defendant no. 1 is party in Special Civil Suit No. 222/94/B and Special Civil Suit No. 15/01/A and they were very well aware that if at all the tenants had to surrender their tenancy rights under the Goa, Daman and Diu Agricultural Tenancy Act then they have to go before the Mamlatdar.

70. The plaintiffs state that the above suits have been filed by the defendant no. 1, 2 to overcome the obstacle prohibition under the Goa Land Use (Regulations) Act 1991, which prohibits agricultural tenanted land to be used for any other purpose. The plaintiffs state that the parties in the Special Civil Suit No. 15/01/A have grossly abused the process of Court by using the Civil Court to obtain a judgment and decree for recording the pure commercial agreement between the parties which is prohibited, so that at the same time in directly selling agricultural tenanted land for construction, which is prohibited under the law. The Regular Civil Suit no. 15/2001/A was filed on 12/2/2001 and disposed on 11/4/2001 which is within a period of two months. This shows that both the suits were filed with all preparations and understanding between the parties before hand. The agreement of sale dt 29/8/1989 with the defendant no. 2 and 3 was suppressed. The plaintiff state that for the aforesaid reasons and the circumstances it lead to only one conclusion that the parties were acting in collusion with each other for the purpose of obtaining the decree with ulterior motive and for that reasons, the plaintiff states that the Judgment and decree obtained by collusion, fraud and one void ab initio. Therefore this decree are required to be declared as illegal.

71. The plaintiffs state that order of deleting the name of the persons could not have been made because Rayu Iswar Gawas was declared to be a tenants under the Goa Daman and Diu Agricultural Tenancy Act in Tenancy Case NO. CAJ/ARC/PRC/10/AND-11/71 and that the law specifically mandates that if at all tenancy rights have to be surrendered

they have to be surrendered before the Mamlatdar under the Agricultural Tenancy Act, or, the persons have to obtain a negative declaration as to the status of the tenants before the Mamlatdar under section 7 of the Goa Agricultural Tenancy Act.

72. The plaintiffs state that in this suit the defendants have been declared not to be tenants of lands belonging to the Comunidade of Bambolim without making plaintiff as party and without any title to the said property, which is contrary to orders of declaration made in Case NO. CAJ/ARC/PRC/18/71 and Case NO. CAJ/ARC/PRC/10/AND-11/71 obtained by those defendants before the Mamlatdar under section 7 of the Goa Daman and Diu Agricultural Tenancy Act. The plaintiff state that this decree could not have been passed since the decree in Regular civil Suit No. 224/94 was fraudulently obtained and in the said suit no title document are produced. The plaintiffs therefore, state that the judgment and decree made in terms of the consent terms before the Civil Court in Special Civil Suit No. 15/2001/A is without jurisdiction, illegal, null and void. The plaintiffs state that in these circumstances the plaintiffs is entitled for a judgment and Decree declaring the said judgment and Decree is without jurisdiction, illegal and void ab initio.

73. The plaintiff submits that the fraud is further substantiated by the fact that after enquiry it is found that the husband of the defendant no. 1 had an agreement for sale dt. 29/8/1989 with defendant no.2 and 3. The plaintiff could get the copy of the said agreement in the month of November 2012 under letter dt 31/10/2012 from Village Panchayat Curca, Bambolim, Talaulim. The said agreement is in relation to survey no.89/3 and it is mentioned in the said agreement that the defendant no. 2 and 3 shall develop the said property. However in the compromise Decree in Regular Civil Suit NO. 222/ 94 and Regular Civil suit NO. 15/2001/A, 6/2007/C this agreement has not been disclosed which is a clear proof of fraud. The plaintiff crave leave to produce agreement for

sale dt. 29/8/1989 which is marked as **Exhibit Z-2**. The plaintiff submits that the said agreement is illegal as the said property does not belong to defendant no. 1 or her husband. Hence the said agreement is required to be declared as illegal for which the plaintiff is filing the present suit.

74. The plaintiff submits that Form II (Area Book of Village) of the Directorate of Land Survey Department at the time of initial survey of New Cadastral Plan (1972-73) in survey NO. 93, 89 and 90 incorporated Comunidade of Bambolim as the owner with authenticated signature at Column no. 10 of Form II. The plaintiff submits that Comunidade Plan of Lote No. 43, 47, 48 and 49 are also available on records with Government Department i. e. Directorate of Settlement and Land Records which is authenticated which shows that the suit property belongs to the plaintiff and was not granted to any other person. The plaintiff submits that Lote No. XXX Horta da Vigario (Vigarochi Gal) now under survey no. 103/1, 2, 104/1 originally owned by plaintiff and which was allotted to Fabrica da Igreja de Bambolim shows that at one side it has boundaries of Lote No. 47 and 49.

75. The plaintiff submits that therefore the sale deeds executed by the defendant no. 1 to 3 with defendant no. 6 to 37 do not confer any title on the defendant no. 6 to 37. Considering these facts, fraud played by the defendant no. 1, 2 and 3 and documents of title of the plaintiff, the plaintiff is entitled to be declared as owner of the suit property and the plaintiff is entitled for a judgment and Decree declaring the sale deeds executed by the defendant no. 1 to 3 with defendant no. 6 to 37 are illegal, null and void ab initio.

76. The plaintiff submits that on the basis of the sale deeds the defendants 6 to 37 have got his name included in the survey records. This is illegal and the name of the defendant no. 1 to 37 has to be deleted from the

survey records. The plaintiff crave leave to produce Form I & XIV of survey no. 89/3 and 90/1 which is marked as **Annexure Z-3**.

77. The plaintiffs state that the defendant no 1 to 37 are illegally claiming the suit property. The defendant no. 1 or her predecessors were never in possession of the suit property which is evident from the fact that during Land Acquisition Proceedings the husband of defendant no. 1 could not establish title and various persons had claimed to be tenant of the suit property and the plaintiff had auctioned the produce in the suit property in the year 1970. Besides this the compensation after acquisition of the land of the original property Oros and Saveli Gali under survey no. 89/1, 93/1 is paid to the plaintiff as mentioned in the foregoing paragraphs. The plaintiff submits that only on the basis of the illegal compromise decree in special Civil suit no. 224/94 and sale deeds executed by the defendant no. 1, the possession is claimed by defendant no. 1 to 37. Therefore the defendant no. 1 to 37 does not have any right in the suit property and possession claimed by the defendant no. 1 to 37 is illegal which is based on fraudulent sale deeds. The defendant no. 1 through defendant no. 1 to 3 are developing the suit property. The defendant no. 6 to 37 are claiming right on the basis of sale deeds and defendant no. 4, 27 have constructed structures in the suit property on the basis of sale deed of plots in the suit property. In these circumstances the plaintiffs is entitled for a judgment and Decree of permanent injunction to stop all the activities and directing the defendants no. 1 to 37 to remove all the structures and hand over vacant possession of the suit property to the plaintiff.

78. Without prejudice to above, the plaintiff submits that the Miscellaneous civil application no. 6/2010 for recall of decree in special civil suit no. 224/1994 is pending and in terms of the said decree in Regular Civil Suit NO. 222/1994 the defendant no. 1 is not entitled to sell the suit property. The said decree states that the plots were to be given to the

plaintiff, Gaonkars and until the plots are given, the defendant no. 1 shall not be entitled to sell the suit property. The application to recall the said decree is pending and in any event the said decree has not been satisfied and has not become final. Besides this in the said consent decree in Regular Civil Suit NO. 222/1994, it is not mentioned that the defendant no. 1 is owner of the property under survey no. 89/3 and 90/1 and the defendant no. 1 to 3 have not disclosed agreement dt. 29/8/1989 in respect of the said area under survey no. 89/3.

79. The plaintiff submits that the defendant no. 1 to 3 have obtained various permissions based on the sale deeds. The plaintiff crave leave to challenge the said permissions by filing appropriate proceedings since the defendant no. 1 to 40 have no title to the suit property as stated above and there is a fraud played by filing various suits. The plaintiff shall file separate proceedings challenging the permissions obtained by the defendant no. 1 to 37 after following the due process of law.

80. The plaintiff submits that after the order of honorable High Court in W.P. No. 102/2009 the administrator of comunidade had passed order dt 3/7/2009 observing that there is fraud and the comunidade should initiate proceedings. However the managing committee holding the charge at this particular time only filed application for recalling the decree in Regular Civil Suit No. 224/1994 and at this time writ petition no. 506/2009, 557/2009, 577/2009 and 657/2011 filed by the Gaunkars were pending before the Hon'ble High Court. The said petitioners were decided on 29/3/2012 by the Hon'ble High Court observing that the parties should approach Civil Court. The present managing committee took over charge in March 2013 and found that action has to be taken in the matter. The plaintiff submits that therefore in the month of March 2013 the plaintiff engaged one advocate to initiate proceedings in respect of the suit property. Said advocate issued public notice dt 31/1/2013. The defendant no. 2 and 3 filed reply dt. 15/2/2013 to this

notice denying the claim of the notice. However the defendants have not produced any title documents and are relying on the only certificate of the clerk of the Comunidade. The plaintiff crave leave to produce public notice published in Navhind Times dt. 21/1/2013 and reply dt. 15/02/2013 which are produced and marked as **Annexure Z-4 Collectively**. The plaintiffs managing committee thereafter verified the record and found that a systematic fraud has been committed on the comunidade. The present Managing Committee therefore took legal advice and were advised that the Comunidade has to file suit challenging the sale deeds, decree passed in Civil Suits and for recovery of possession of the suit property and stop illegal development. The present Managing Committee thereafter procured various documents and decided to file the proceedings.

81. The plaintiff also engaged a surveyor to verify the plans of the Comunidade and present survey numbers to confirm the identity of the property. The surveyor after verification of the documents, planta no. 15035, 15036, 15037 and present survey plan has confirmed that the present survey numbers namely survey no. 89/1, 2, 3, 93/1 to 4, 90/1 and 2 are the survey numbers given to original property under planta no. 15036 and 15037 called Saveli Gali and Oros. The plaintiff submits that surveyor Mr. Prazeres A. Gonsalves opined that the part of the property under survey no. 89/3 and 90/1 of village Bambolim is part of the property of Lote no. 43 'B' called "OROS" and the property under survey no. 93/3(part), 93/4 (part) of village Bambolim is part of the property of Lote no. 49 called "Saveli Gali" in village Bambolim, Tiswadi Taluka of State of Goa and the plaintiff is owner of the said property. The plaintiff crave leave to refer and rely upon the said survey report dt. 24/10/2013 along with the plan prepared by Mr. Prazares Gonvaes which is marked as **Annexure Z-5**.

82. The plaintiff submits that the survey records under section 105 of Land Revenue Code, are presumptive and correctness of entries can be disputed and proved by producing title documents. It is well settled that the survey records do not confer "Title". According to the present survey, the properties under survey no. 89/3 and 90/1 are part of original survey no. 89 and 90 respectively called Oros which belonged to the plaintiff and the said survey does not mention that survey holdings granted as "Aframanto" to the husband of the defendant no. 1. The purported certificate of the Clerk is not enough to show "Subsisting Title" with the defendant no. 1 to 40. After examining the records and taking legal advice the plaintiff made an application dt. 17/7/2013 and 19/9/2013 to the Honorable Administrative Tribunal for permission to file suit. Accordingly the permission has been granted on 8/10/2012 and 15/10/2013. Thereafter the plaintiff has filed one suit bearing Special Civil suit No. 52/2013/A in respect of survey no. 93/2,3 and 4 which is part of property Saveli Gali and Part of the property Oros and the present suit is filed in respect of the property Oros.
83. The plaintiff submits that under order dt. 3/7/ 2009 the Administrator of Comunidade held that there is a fraud played and the comunidade should take legal action. The plaintiff thereafter filed an application to recall the consent decree in special civil suit no. 224/1994 which is registered as Miscellaneous civil application no. 6/2010/B. The plaintiff submits that as per direction of the Hon'ble High Court Dy collector passed order dt. 01/08/2011 holding that there is tenant in survey no. 90/1 and there is no tenant in other survey numbers against which appeal filed by defendant no.2 as well as the plaintiff is pending before the Administrative Tribunal.
84. The plaintiffs state that considering the fraud played by defendant no. 1 to 3 the plaintiff is entitled for the Judgment and Decree declaring that the part of the property under survey no. 89/3 and 90/1 of village

Bambolim is part of the property of Lote no. 43 'B' called "OROS" in village Bambolim, Tiswadi Taluka of State of Goa and the plaintiff is owner of the said property

85. The plaintiffs state that the plaintiff is entitled for the Judgment and Decree declaring the inclusion of the name of the defendant no. 1,4 to 40 in the property under survey no. 89/3, 90/1, of village Bambolim is illegal and the names of the defendant no. 1,4 to 40 has to ordered to be deleted and the plaintiffs name has to be ordered to be included in the said survey records.

86. The plaintiffs state that the plaintiff is entitled for the Judgment and Decree declaring that Decree in the compromise decree dated 11/4/2001 in Special Civil Suit No. 15/2001/A before Civil Judge Senior Division at Panaji is without jurisdiction, illegal and void ab initio and not binding on the plaintiff.

87. The plaintiffs state that the plaintiff is entitled for the Judgment and Decree declaring that Decree in the agreement dated 29/8/1989 between the defendant no. 1, her husband and defendant no. 2 is illegal and void ab initio and not binding on the plaintiff.

88. The plaintiffs state that the plaintiff is entitled for the Judgment and Decree directing the defendant no.1 to 3 and 4 to 40 their agents servants or any other person claiming through them to hand over the vacant possession of the suit property under survey no. 89/3, 90/1 of village Bambolim to the plaintiff.

89. The plaintiffs state that the plaintiff is entitled for Judgment and Decree of permanent injunction restraining the Defendants no.1 to 40 their agents servants or any other person claiming through them from starting any development and construction activities in the suit property, changing the nature of suit property under survey no. 89/3, 90/1, and

alienating, transferring the suit property in any manner. The plaintiff is also entitled to remove the structures construction by defendant no. 4 t,27 or any other defendants in the suit property. During the pendency of the suit the plaintiff is entitled for temporary injunction for restraining the defendants from starting any further activity and creating any third party interest for which separate application is filed.

90. The plaintiffs state that the cause of action to file the present suit arose on 29/3/2012 when the Hon'ble High Court observed that the parties should approach Civil Court and after investigation it is found that there is fraud played on the Comunidade by defendant no. 1 to 3. It is settled principle of law that the fraud vitiate all the action and documents. Hence the suit is not barred by limitation as stated above. The plaintiff submits that the Comunidade is managed by the elected managing committee and has to file the proceedings. The present Managing committee was elected and took charge in March 2013. After that the Managing committee took legal advice and made investigation. In view of observation of the Hon'ble High Court in judgment dt. 29/3/2013 in Writ Petition No. 506/2009, 557/2009, 577/2009 and 657/2011 and after details examination of the documents it is found that there is fraud played on the plaintiff by collusion with the person claiming to be tenants of the Comunidade by defendant no. 1 to 3 and the property of the Comunidade has been allowed to be taken away without following due process of law and causing loss to the Comunidade.

91. The plaintiff has not taken out any other proceedings in this Hon'ble Court, Hon'ble High Court, Supreme Court or any other court in respect of the subject matter of this suit. However civil suit no.66/2009 filed by B. B. A D'Souza and another before Honorable District Court and Miscelinous Civil Application No. 6/2010/B and Special Civil Suit No. 52/2013/A filed by the Plaintiff is pending before this Honorable Court.

The plaintiffs has not filed any other suit on the same cause of action and subject matter/prayers made in this suit.

92. For the purpose of valuation and Court fee the prayers are valued at Rs. 36,00,00,000/- (Rupees thirtysix crores only) and the maximum Court fee of Rs. 15,000/- is affixed hereto.

93. The suit property is located at Village Bambolim, Tiswadi Taluka which is within the jurisdiction of this Court and therefore this Court has jurisdiction to entertain and try the present suit.

94. The plaintiffs shall rely upon documents, a list whereof is annexed herewith.

95. For the purpose of service, the addresses of the plaintiffs and defendants is as per the memo of addresses annexed hereto.

96. The plaintiff has not received any caveat from the defendants.

97. The plaintiff therefore prays:-

PRAYERS

- a. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the suit property admeasuring 36,868 sq mts is a part of the property namely under survey no. 89/3, 90/1 of village Bambolim is part of the property of Lote no. 43 'A' called "OROS" of the plaintiff and the plaintiff is owner of the said property.
- b. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the agreement dt 29/8/1989 registered under no. 3785 before Notary Gopal V. Tamba at Panaji, Tiswadi-Goa executed between the defendant no.1 and 2 in respect of the suit property under

survey no. no. 89/3 of village Bambolim is illegal, null and void ab initio and the same may be ordered to be cancelled.

- c. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the inclusion of the name of the defendant no.1, 4 to 40 in the Form I & XIV of the property under survey no. no. 89/3, 90/1 of village Bambolim is illegal and the name of the defendant no. 1, 4 to 40 may be ordered to be deleted and the plaintiffs name may be ordered to be included in the said survey records as owner/occupants of the suit property
- d. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that Decree in the compromise decree dated 11/4/2001 in Special Civil Suit No. 15/2001/A before Civil Judge Senior Division at Panaji is without jurisdiction, illegal and void ab initio and is not binding on the plaintiff.
- e. That this Hon'ble Court may be pleased to pass a Judgment and Decree directing the defendant no.1 to 40 to hand over the vacant possession of the suit property under survey no. 89/3, 90/1 of village Bambolim admeasuring 36,868 sq mts to the plaintiff.
- f. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the certificate dt. 18/3/1904 allegedly issued by Clerk of Comunidade and relied upon by defendant no. 1 to 3 is not a title ownership document of the suit property Oros and does not confer any right of ownership in favour of defendant no. 1 or defendant no. 2 to 40 or any person claiming through them including the predecessors of defendant no. 1 late Alexander Rodrigues, Maria Concesao Rodrigues.
- g. That this Hon'ble Court may be pleased to pass a judgment and decree declaring that the certificate 18/3/1904 allegedly issued by Clerk of Comunidade and relied upon by defendant no. 1 to 3 is not a grant of the suit property oros and does not confer any right on the defendant no. 1 to 40 or their predecessors in the suit property.

- h. That this Hon'ble Court may be pleased to pass a judgment and decree declaring that the property under survey no. 89/3, 90/1 of village Bambolim is part of the plaintiff property called Oros described in the plaint and the same was never granted or sold to late Alexander Rodrigues, Maria Concesao Rodrigues or any other person.
- i. That this Hon'ble Court may be pleased to pass a Judgment and Decree of permanent injunction restraining the Defendants no.1 to 40 their agents, servants or any other person claiming through them from starting any development and construction activities in the suit property, changing the nature of suit property and alienating, selling, transferring, the suit property under survey no. 89/3, 90/1, of village Bambolim in any manner.
- j. That pending the hearing and final disposal of the suit this Hon'ble Court may be pleased to pass an order of temporary injunction restraining the Defendants no.1 to 40 their agents servants or any other person from starting any development and construction activities or changing the nature of suit property and alienating, transferring the suit property under survey no. 89/3, 90/1 of village Bambolim in any manner.
- k. For add interim relief in terms of prayer (j)
- l. Any other relief this honorable court deem fit and proper.

Place: Panaji, Goa.

Dated: 30th December, 2013

PLAINTIFF

ADVOCATE FOR THE PLAINTIFF

VERIFICATION

I, Mr. Louis Abreu, Son of late Agostinho Jose Carmo Abreu, Aged 65 years, Resident of H. No. 283/C, Bambolim Church road, P.O.GMC Complex, Bambolim, Ilhas Goa Attorney of Comunidade of Bambolim having office at Bambolim, P O GMC Complex, Bambolim, Ilhas Goa, do hereby solemnly verify and state that contents of paragraph 1 to 89 of the above Plaint are based on the records of the Comunidade to which I have access and I believe the same to be true and the contents of Paragraph 90 to 97 are in the nature of legal submissions based on legal advice which I believe to be true.

Solemnly affirmed at Panaji-Goa,

On this 30th day of December, 2013

DEPONENT

Identified by me:-

Advocate for the plaintiff.

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,
AT PANJIM, GOA

Special Civil Suit No. /2013

Comunidade of Bambolim,

...Plaintiff

V/s

1 Mrs. Dionisia Dias e Mergulhao,
And others

.....Defendants

AFFIDAVIT

I, Mr. Louis Abreu, Son of late Agostinho Jose Carmo Abreu, Aged 65 years, Resident of H. No. 283/C, Bambolim Church Road, P.O.GMC Complex, Bambolim, Ilhas Goa Attorney of Comunidade of Bambolim having office at Bambolim, P O GMC Complex, Bambolim, Ilhas Goa, do hereby on solemn oath and affirmation states and submit as under:-

1. I am duly elected attorney of comunidade of bambolim and I have authority to file the present suit. I say that on behalf of the plaintiff I have filed a suit for Declaration, permanent injunction, and consequential reliefs in this Hon'ble Court.

2. I say that I have read the accompanying Plaint understood the same. The contents therefore are as per the records of the comunidade to which I have access. I say that contents of paragraph 1 to 89 of the above Plaint are based on the records of the Comunidade to which I have access and I believe the same to be true and the contents of Paragraph 90 to 97 are in the nature of legal submissions based on legal advice which I believe to be true.

3. I say that I affirm the facts set out in the Plaint as if the same are incorporated herein for the purpose of this affidavit to avoid repetition.

4. I say that the annexure to the suit are true copies of the original/certified copies.
5. I say that fraud is played on the plaintiff by the defendant as stated in the plaint. I say that the prayers in the plaint may be granted otherwise irreparable loss and prejudice shall cause to the plaintiff.
6. I say that the contents of the paragraphs 1 to 5 herein above are true and correct to my own knowledge.

Solemnly affirmed at Panaji, Goa.

On 30th day of December, 2013

DEPONENT

Identified by me;

ADVOCATE FOR THE PLAINTIFF

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,
AT PANJIM, GOA

Misc. Civil Application

In

Special Civil Suit No. /2013

Comunidade of Bambolim,
A body constituted and functioning under
the Code of Comunidades 1961,
represented therein by their duly elected Attorney,
having their office at
Bambolim Church road,
P. O. GMC Complex,
Bambolim, Ilhas Goa -403202

...Plaintiff

V/s

1. Mrs. Dionisia Dias e Mergulhao,
w/o late Maximo Mergulhao, housewife,
Model Residency, Building No. 3,

Flat No. F4, First floor,
St. Inez, Panaji, Tiswadi, Goa

2. M/s Raghurai Tamba,
A registered partnership firm,
through its partner Shri. Raghurai Tamba,
major in age, Having its office at "Parimal"
Altinho, Panaji-Goa
3. Mr. Raghurai Tamba,
major in age, Businessman, r/o "Parimal"
Altinho, Panaji-Goa
4. Mr. Gonsalo G. Dias Sapeco,
Husband of late Luizinha Sebastiana Dias Sapeco,
Major in age, r/o Bambolim, P. O. GMC Complex,
Bambolim, Tiswadi-Goa
5. Mrs. Iria Lazarus,
Major in age, r/o H. No. 1056,
Primeiro Bairro, Santa Cruz,
P. O. Santa Cruz, Tiswadi-Goa
6. Mr. R. Vasantha R. Krishnan,
Major in age,
c/o T. S. Varadarajan,
Mormugao Port Trust/M/154B, Sada,
Vasco-da-Gama,
7. Mr. Bernardo Fernandes,
Major in age, r/o H. No. 814/2,
Morgado, Goa Velha, Ilhas-Goa
8. Mr. Leonardo Fernandes,
Major in age, r/o H. No. 814/2,
Morgado, Goa Velha, Ilhas-Goa
9. Mr. Vishwanath V. Kamat,
Major in age, r/o F-2, Kamat Nagar,
Helidoro Salgado Road,
Panaji-Goa
10. Mrs. Kamal V. Kamat,
Major in age, r/o F-2, Kamat Nagar,
Helidoro Salgado Road,
Panaji-Goa
11. Mr. Vivek Pandurang Salunke,

Major in age, c/o Mr. Prakash Baburao Powar,
r/o A7, Varuna Coop. Housing Society,
Altinho, Panaji-Goa

12. Mr. Prakash Baburao Powar,
Major in age, r/o A7,
Varuna Coop. Housing Society,
Altinho, Panaji-Goa

13. Mr. Anthony Borges Christopher Tucker
Major in age, r/o H. No. 1108,
Segundo Bairro, Santa Cruz, Ilhas, Goa

14. Mr. Walter Joseph Arthur Tucker,
Major in age, r/o H. No. 1108,
Segundo Bairro, Santa Cruz, Ilhas, Goa

15. Mr. Felix Mendes,
Major in age, r/o Forgottem,
Goa Velha, Ilhas-Goa

16. Mrs. Ana M. D'Souza
Major in age, r/o Blanch House,
Opp Old Power Housing,
Baina, Vasco-da-gama

17. Mr. Sadat Abdur Rauf Xa Muzavor
Major in age, r/o E-303, Opp Power Gira,
Boca-da-Vaca, Panaji-Goa

18. Mrs. Artimizia Guilhermina Gonsalves
Major in age, r/o 677, Dugrem,
Agasaim-Goa

19. Mrs. Amita P. Kamat
Major in age, r/o C/o Pradeep V. Kamat,
Supravi, Neura, Ilhas-Goa

20. Mr. Agnelo Benny Braganza
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa

21. Mr. Glenn J. Kalavampara
Major in age, r/o Aparna T-2, 3rd floor,
Dr. Atmaram Borcar Road,
Panaji-Goa

22. Mr. Mahableshwar M. Naik
Major in age,
r/o Valpoi, Sattari-Goa
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa
23. Mrs. Surekha Suresh Salunke
Major in age,
r/o Valpoi, Sattari, Goa
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa
24. Mr. Peregrino Gracias
Major in age,
r/o Siridao, Figueira Bhat,
Tiswadi-Goa
25. Mr. Joel Albert Fernandes
Major in age,
r/o Villa "AMOR",
Nagally Hills Colony,
Dona Paula, Ilhas-Goa
26. Mr. Perpetuo Socorro Pires
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa
27. Mr. Cosme Antonio Gracias
Major in age, r/o Siridao,
Figueira Bhat, Ilhas-Goa
28. Mrs. Ana Francisca Gracias
Major in age, r/o Siridao,
Figueira Bhat, Ilhas-Goa
29. Mr. John Cajetan Mascarenhas
Major in age, r/o Men Rave 25,
Lake View Colony, Miramar, Panaji-Goa
30. Mrs. Nubia Albina Mascarenhas
Major in age, r/o Men Rave 25,
Lake View Colony, Miramar, Panaji-Goa

31. Mr. Sebastiao E. J Coutinho
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa
32. Mrs. Fatima Q Dias Coutinho
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa
33. Mr. Agnelo Norberto Pereira de Araujo
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa
34. Mr. Bosco D. Rodrigues,
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa
35. Ms. Irene Apolonia Adeline Araujo
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa
36. Esmeralda Afonso e Pouse Horta
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa
37. Dominic Horta
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-Goa
38. Mrs. Tulshi R. Gauns,
Major in age, r/o 58,
behind Bambolim Church,
Bambolim, Ilhas -Goa

39. Mr. Khuku Raju Gauns,
Major in age, r/o 58,
behind Bambolim Church,
Bambolim, Ilhas -Goa

40. Mr. Purshottam L. Carbotkar,
Major in age,
c/o. Mr. Raghurai Tamba,
major in age, Businessman,
r/o "Parimal" Altinho, Panaji-GoaDefendants

(Above addresses are registered
addresses of parties)

**APPLICATION FOR TEMPORARY INJUNCTION UNDER
ORDER 39 RULE 1 AND 2 OF CPC 1908**

MAY IT PLEASE YOUR HONOUR

The Plaintiff state and submit as under:-

1. The Plaintiff has filed today the suit for declaration of permanent injunction, and consequential relief's. The Plaintiffs crave leave of this Hon'ble court to rely upon each and every averment made there in plaint as if same are reproduced herein this application.
2. The plaintiff states that the subject matter of the present suit is the illegal acts of the defendants and the property of the plaintiff is being sought to be grabbed as their own. Thus causing loss and damage to the plaintiff. The defendant no. 1 is procuring various permissions and is attempting to start construction activities and the Defendants no.1 to 3 are attempting to sell the suit property belonging to plaintiff and fraud is played by the defendants in order to grab the suit property.
3. The plaintiff submits the defendant no. 1 to 40 or any person acting through them are not entitled to conduct any activities in the suit property. There is clear infringement of plaintiffs right and therefore the defendant no. 1 to 40 are required to be restrained by an order of temporary injunction restraining

the Defendants no.1 to 40 their agents servants or any other person from starting any development and construction activities or , changing the nature of suit property and alienating, transferring the suit property under survey no. 89/3, 90/1 of village Bambolim in any manner.

4. Due to the illegal acts of the defendants, irreparable loss and damage is caused to the plaintiff and the defendants are deriving the plaintiffs the plaintiffs property. That by misrepresentation the defendant no. 1 to 3 have got the sale deed executed and is trying to develop and sell the suit property. Therefore the plaintiff is entitled to stop all the activities.
5. The plaintiff states that during the pendency and final disposal of the present suit, the plaintiff is entitled for interim temporary injunction in the aforesaid terms, for which the plaintiff is filing present application.
6. The plaintiffs state that the cause of action to file the present suit arose on 29/3/2012 when the Hon'ble High Court observed that the parties should approach Civil Court and after investigation it is found that there is fraud played on the Comunidade by defendant no. 1 to 3. It is settled principle of law that the fraud vitiate all the action and documents. Hence the suit is not barred by limitation as stated above. The plaintiff submits that the Comunidade is managed by the elected managing committee and has to file the proceedings. The present Managing committee was elected and took charge in March 2013. After that the Managing committee took legal advice and made investigation. In view of observation of the Hon'ble High Court in judgment dt. 29/3/2013 in Writ Petition No. 506/2009, 557/2009, 577/2009 and 657/2011 and after details examination of the documents it is found that there is fraud played on the plaintiff by collusion with the person claiming to be tenants of the Comunidade by defendant no. 1 to 3 and the property of the Comunidade has been allowed to be taken away without following due process of law and causing loss to the Comunidade.

7. The Plaintiff submits that irreparable loss and prejudice shall be caused to the plaintiff if the reliefs prayed are not granted. Plaintiffs state that they have made out prima facie case and that the balance of convenience is in her favour. No prejudice whatsoever will be caused to the defendants if the temporary injunction is granted to the plaintiff.
8. The plaintiff has not taken out any other proceedings in this Hon'ble Court, Hon'ble High Court, Supreme Court or any other court in respect of the subject matter of this suit. However civil suit no.66/2009 filed by B. B. A D'Souza and another before Honorable District Court and Miscellaneous Civil Application No. 6/2010/B and Special Civil Suit No. 52/2013 filed by the Plaintiff is pending before this Honorable Court. The plaintiff has not filed any other suit on the same cause of action and subject matter/prayers made in this suit.
9. The suit property is located at Village Bambolim, Tiswadi Taluka which is within the jurisdiction of this Court and therefore this Court has jurisdiction to entertain and try the present suit.
10. The applicant shall rely upon documents, a list whereof is annexed to the plaint for the purpose of deciding present application.
11. For the purpose of service, the addresses of the plaintiffs and defendants is as per the memo of addresses annexed hereto.
12. The plaintiff has not received any caveat from the defendants ..
13. The Plaintiffs therefore prays:
 - a) That pending the hearing and final disposal of the suit this Hon'ble Court may be pleased to pass an order of temporary injunction restraining the Defendants no.1 to 40 their agents servants or any other person from starting any development and construction activities or changing the nature of suit property and alienating, transferring the suit

property under survey no. 89/3, 90/1 of village Bambolim in any manner.

- b) For an ex parte order in terms of prayer (a)
- c) Any other order this Hon'ble Court deem fit and proper.

Place: Panaji, Goa.

Dated: 30th December, 2013

PLAINTIFF

ADVOCATE FOR THE PLAINTIFF

VERIFICATION

I, Mr. Louis Abreu, Son of late Agostinho Jose Carmo Abreu, Aged 65 years, Resident of H. No. 283/C, Bambolim Church road, P.O.GMC Complex, Bambolim, Ilhas Goa Attorney of Comunidade of Bambolim having office at Bambolim, P O GMC Complex, Bambolim, Ilhas Goa, do hereby solemnly verify and state that contents of paragraph 1 to 7 of the above application are based on the records of the Comunidade to which I have access and I believe the same to be true and the contents of Paragraph 8 to 13 are in the nature of legal submissions based on legal advice which I believe to be true.

Solemnly affirmed at Panaji-Goa,

On this 30th December, 2013

DEPONENT

Identified by me;-

Advocate for the plaintiff.

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,
AT PANJIM, GOA

Misc. Civil Application

In

Special Civil Suit No. /2013

Comunidade of Bambolim, ...Plaintiff

V/s

1. Mrs. Dionisia Dias e Mergulhao,
And othersDefendants

AFFIDAVIT

I, Mr. Louis Abreu, Son of late Agostinho Jose Carmo Abreu, Aged 65 years, Resident of H. No. 283/C, Bambolim Church Road, P.O.GMC Complex, Bambolim, Ilhas Goa Attorney of Comunidade of Bambolim having office at Bambolim, P O GMC Complex, Bambolim, Ilhas Goa, do hereby on solemn oath and affirmation states and submit as under:-

1. I am duly elected attorney of comunidade of bambolim and I have authority to file the present suit and application for temporary injunction on behalf of the plaintiff. I say that the plaintiff has filed a suit for Declaration, permanent injunction, and consequential reliefs along with application for temporary injunction in this Hon'ble Court.

2. I say that I have read the accompanying Plaint understood the same. The contents therefore are as per the records of the comunidade to which I have access. I say that contents of paragraph 1 to 7 of the above application are based on the records of the Comunidade to which I have access and I believe the same to be true and the contents of Paragraph 8 to

13 are in the nature of legal submissions based on legal advice which I believe to be true

3. I say that I affirm the facts set out in the Plaint as if the same are incorporated herein for the purpose of this affidavit to avoid repetition.
4. I say that the annexures to the suit are true copies of the original/certified copies.
5. I say that fraud is played on the plaintiff by the defendant as stated in the plaint. I say that the prayers in the plaint and application may be granted otherwise irreparable loss and prejudice shall cause to the plaintiff.
6. I say that the contents of the paragraphs 1 to 4 herein above are true and correct to my own knowledge.

Solemnly affirmed at Panaji, Goa.

On 30th day of December, 2013

DEPONENT

Identified by me;

ADVOCATE FOR THE PLAINTIFF

7-

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,
AT PANJIM, GOA

Special Civil Suit No. /2013

Comunidade of Bambolim,Plaintiff

V/s

1. Mrs. Dionisia Dias e Mergulhao,
And othersDefendants

The Plaintiff crave leave to refer and rely upon following documents:-

LIST OF DOCUMENTS

Sr. No.	Particulars	Page No.
1.	The Copy of permission dt. 8/10/2013 and 15/10/2013 obtained from Honorable Administrative Tribunal to the plaintiff to file the suit at Annexure "A"	1 to 6
2.	The Copy of Tombasao Book No. 1 and Tombasao Book No. 2 showing that the said property Saveli gali and Oros belong to the Comunidade of Bambolim copy of which along with english translation is produced at Annexure "B"	7 to 26
3.	old survey Plan (planta) is available in the office of Director of Settlement and Land Records Government of Goa along with New survey plan of Village Bambolim Annexure C.	27 to 30
4.	The Copy of the form II (Area) book of Village of S. No. 89, 90/1 and 2, 93 at Annexure D.	31 to 33

5.	The Copy of the notification dt.18/8/1965 and award dt. 30/3/1966 at Annexure E.	34 to 46
6.	The Copy of letter dt.26/2/1966 the copy of the same is produced and marked at Annexure F.	47 to 48
7.	The Copy of the notification dt. 4/12/1969 which is produced at Annexure "G"	49 to 50
8.	The Copy of Minutes of Auction dt. 3/1/1971 of "OROS at Annexure "H colly" and Minutes of Auction of "Saveli Gali" at Annexure "I colly" along with translation copy	51 to 62
9.	The Copy of orders in the Case No. CAJ/ARAC/PRC/10/EHD-11/71 and 18/1971 the orders dated 20/12/1971, 10/12/1971 passed by the Mamlatdar of Tiswadi Annexure "J" colly	63 to 65
10.	The Copy of the notification dt.31/12/1980 and Award LAO/386 dt. 23/3/81 which is produced at Annexure "K"	67 to 70(h)
11.	The Copy of the Judgment and decree dt. 6/8/86 in Special Civil Suit No. 127 and 128/A at Annexure "L".	71 to 102
12.	The Copy of applications for intervention, application for withdrawal filed by Maximo Mergulhao and judgment and order dt. 15/1/1982 at Annexure M Colly.	103 to 114
13.	The Copy of records of the year 1939 of Payment of foros ground rent along with English Translation at Annexure "N"	115 to 119
14.	The Copy of the Judgment dt. 22/11/1993, 24/12/2002 in LCA no. 104/1994 at Annexure "O"	120 to 132
15.	The Copy of the Judgment dt. 31/8/2000 in LAC 98/1987 at Annexure "P"	133 to 137

16.	The Copy of Judgment dt. 24/8/1993 in LAC 9/1981 and 31/8/2000 in LAC 100/87 at Annexure "Q"	138 to 150
17.	The Copy of Judgment dt. 7/8/1995 in LAC NO. 96/1987 at Annexure "R"	151 to 170
18.	The Copy of Judgment dt. 7/6/1988 in W. P. No. 2/1988 at Annexure "S" collectively	171 to 189
19.	The Copy of the said compromise terms dated 19.11.1998, the order passed on 21.11.1998 and the Decree dated 21.11.1998 in Special Civil Suit No. 222/94/B before Civil Judge Senior Division at Panaji. at Annexure T	190 to 204
20.	The Copy of Judgment dt. 18/2/2009 in W. P. No. 102/2009 at Annexure "U"	205 to 206
21.	The Copy of order dt. 3/7/2009 in of Administrator of Comunidade at Panaji at Annexure "V"	207 to 210
22.	The Copy of Judgment dt. 29/3/2012 in writ petitions no. 506/2009, 557/2009, 577/2009 and 657/2011 and order of the Deputy Collector dt. 1/8/2011 which is produced in writ petitions no. 506/2009, 557/2009, 577/2009 and 657/2011 at Annexure W	211 to 294
23.	The Copy of letter dt. 5/12/2012 and dt. 9/10/2012 at Annexure "X" Collectively"	295 to 301
24.	The Copy of judgment and decree dt. 11/4/2001 in special Civil Suit NO. 15/2001/A at Annexure "Y"	302 to 312
25.	The copy of sale deeds dt. 22/6/1998 at Annexure "Z"	313 to 332
26.	The Plaintiff crave leave to refer and rely upon the sale deed dt. 18/07/2007 which is produced at Annexure Z 1	333 to 370
27.	The Copy of agreement for sale dt. 29/8/1989at Annexure Z-2	371 to 389
28.	The Copy of Form I & XIV of survey no. 93/2, 3 and	390 to 392

	4 marked at Annexure "Z-3"	
29.	The Copy public notice published in Navhind Times dt. 21/1/2013 and reply dt. 15/02/2013 and 21/2/2013 which are produced and marked at Annexure Z 4 Collectively	393 to 400
30.	The Copy of survey report of Mr. Prazares Gonvales marked at Annexure Z-5.	401 to 404
31	Any other documents with the permission of this Hon'ble Court.	

Place : Panjim

Date : /12/2013

Adv. For the Plaintiff